

COMPLETE LEARNING SESSION

Political Obligation, Resistance and Law - Complete Topic Package

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Political Obligation, Resistance and Law

TEN-SESSION CORE PATH • PRACTICE • OPTIONAL ADVANCED • REGISTER NOTES

1 Political Obligation: Problem, Definitions and Grounds

2 Law: Nature, Schools and the Rule-of-Law Sequence

3 Obligation Thinkers from Hobbes to Gandhi

4 Jurisprudence, Resistance and Comparative Application

5 Punishment, Traps, Boundaries and Source Discipline

6 Theses and Directive-Specific Architecture

7 Austin, Hart and Dworkin: Argument Reconstruction

8 Named Evidence for Obligation, Law and Resistance

9 Claim-Evidence-Limit and Mark-Scaled Answers

10 Cautious Indian Application and Final Integration

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Political Obligation, Resistance and Law - Complete Topic Package

Subject: Political Theory **Section:** Subject-wide Syllabus **Generation:** learner-v2:g2 **Ownership:** supplementary conceptual support; no synthetic GS or Optional PYQ ownership is created. **Source policy:** complete Basic owner first; optional Advanced depth only after practice.

CURRENT-AFFAIRS ANCHOR - TELE-LAW AND PRACTICAL ACCESS TO JUSTICE

FACT: Fact (Department of Justice/PIB, 29 March 2026): The National Consultation on Tele-Law was held at Vigyan Bhawan under the DISHA scheme to strengthen technology-enabled pre-litigation legal advice, stakeholder participation and access to legal services.

ANALYSIS: Political-theory use: Practical access to advice and remedies can strengthen rule-of-law legitimacy because citizens can understand, invoke and contest legal authority. The programme does not establish that every valid law or official act is morally justified; validity, legitimacy and obligation must still be distinguished.

Official PIB source: <https://pib.gov.in/PressReleasePage.aspx?PRID=2246380®=3&lang=2>

BASIC LEARNING SESSION

SESSION 1 - Political Obligation: Problem, Definitions and Grounds

Subject: Political Theory | **Tier:** Must-Do (foundation) | **GS/Optional relevance:** GS-II (Polity & Governance) conceptual foundation; PSIR Optional Paper-1 background. **Core area:** Why obey political authority, when resistance is justified, how law relates to morality and liberty, and what can justify punishment. **Grounded in:** O. P. Gauba, *An Introduction to Political Theory*, Fifth Edition (2009), Ch.11-12, PDF pp.280-300; *Socio-Political Philosophy*, PDF pp.164-167 for punishment. **Source edition/cutoff:** Fifth Edition (2009); no post-2009 fact is assumed unless independently dated and tagged CURRENT:. **FACT:** = source-grounded | **ANALYSIS:** = analytical inference/synthesis | **CURRENT:** = dated current anchor | **WRONG:** = trap/misattribution. *Companion:* Political-Theory/advanced/14_Political-Obligation-Resistance-and-Law.md.

1. One-screen conceptual map

POLITICAL OBLIGATION

```
|
+--> FACT: unlimited views
|       force / divine right / strong idealist or absolutist consent
|
+--> FACT: limited views
|       Locke / Green / cautious constitutional resistance / Gandhi
|
+--> FACT: anti-obligation views
|       Marxist (against class-state) / anarchist (against coercive authority)
```

LAW

```
|
+--> FACT: prescriptive law in politics
+--> FACT: natural / analytical / historical / sociological jurisprudence
+--> FACT: law <-> morality
+--> FACT: law <-> liberty
+--> FACT: rule of law
```

PUNISHMENT

```
+--> retributive: proportionate desert
+--> deterrent: prevent future crime
+--> reformative: rehabilitate offender
```

- **FACT:** Gauba defines the problem of political obligation as the question of how far, when and why an individual is obliged to obey law and political authority (PDF p.280).
- **ANALYSIS:** The core exam move is to separate **obedience**, **moral legitimacy**, **resistance**, and **legal validity**, instead of merging them into one idea.

2. Why this topic matters

- FACT: This topic sits exactly at the junction where theory tests the limits of state authority and the citizen's right to disobey or resist (PDF pp.280-289).
- FACT: The law chapter then supplies the conceptual grammar needed to distinguish valid law, just law, custom, adjudication, equity and rule of law (PDF pp.289-300).
- ANALYSIS: UPSC rewards answers that show civil disobedience is not casual law-breaking and that rule of law is not exhausted by mere procedure.
- FACT: The chapter also warns against romanticizing resistance: Gauba repeatedly urges caution, public debate and exhaustion of constitutional methods before extreme action (PDF pp.287-288).

SESSION 2 - Law: Nature, Schools and the Rule-of-Law Sequence

3. Essential definitions

- FACT: **Political obligation**: the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280).
- FACT: **Force-based obligation**: obedience grounded mainly in the superior coercive power of the state (PDF pp.280-281).
- FACT: **Consent**: obedience grounded in explicit or implicit agreement to political authority, classically through social-contract reasoning (PDF pp.282-284).
- FACT: **Common good basis**: obedience owed only insofar as law promotes the shared good of the community, not every command of government (PDF pp.284-286).
- FACT: **Civil disobedience**: deliberate, public and non-violent disobedience of an unjust law or policy, with willingness to accept penalty (PDF p.287).
- FACT: **Conscientious objection**: refusal to comply with a legal duty because conscience forbids participation, as in objection to military service (PDF p.287).
- FACT: **Prescriptive law**: man-made law telling people what they should or should not do under specified conditions, backed by sanctions (PDF pp.289-290).
- FACT: **Natural law school**: law derives authority from a higher moral order discoverable by reason (PDF pp.290-291).
- FACT: **Analytical jurisprudence**: law is positive law, technically valid because properly made and enforceable by authority (PDF pp.291-292).
- FACT: **Historical jurisprudence**: law must be traced to social history, custom and legal evolution (PDF pp.292-293).
- FACT: **Sociological jurisprudence**: law is an instrument of social purpose and social engineering, not merely sovereign command (PDF pp.293-294).
- FACT: **Rule of law**: governance through known, general, non-retrospective law and legally restrained power, not arbitrary will (PDF pp.298-300).
- FACT: **Retributive punishment**: backward-looking punishment justified by the offender's culpable wrong and constrained by proportionality (*Socio-Political Philosophy*, PDF p.164).
- FACT: **Deterrent punishment**: forward-looking punishment intended to discourage the offender (specific deterrence) or others (general deterrence) from future crime (PDF p.165).
- FACT: **Reformative punishment**: forward-looking treatment aimed at rehabilitation and return to law-abiding life, often by addressing social, economic or psychological causes (PDF pp.165-166).
- ANALYSIS: **Proportionality**: severity should not exceed the seriousness and culpability of the offence; this constrains punishment but does not by itself select retribution, deterrence or reform as the governing purpose.

4. Core argument / chapter spine

- FACT: Gauba begins with rival grounds of political obligation: force, divine right, conservative prudence, consent, idealism, Marxism, anarchism and Gandhian civil disobedience (PDF pp.280-287).

- FACT: He rejects purely force-based and divine-right views because they do not secure morally reasoned obedience and leave no room for judging unjust commands (PDF pp.281-282).
- FACT: Among consent theories, Hobbes and Rousseau tend toward strong obligation, whereas Locke gives the clearest limited version by making government a trust answerable to rights and consent (PDF pp.283-284).
- FACT: Green's idealist revision places obligation toward the organized power of society and the common good rather than toward any government demanding blind obedience (PDF pp.284-286).
- FACT: Marxists and anarchists deny political obligation to the existing coercive class-state, though for different reasons and with different visions of social transformation (PDF p.286).
- FACT: Gandhi supplies a disciplined doctrine of resistance: unjust law may be broken, but only openly, non-violently, after persuasion fails, and without sectional selfishness (PDF p.287).
- FACT: The law chapter then shifts from obedience to legal concept-formation: law in political science is prescriptive law, interpreted by natural, analytical, historical and sociological schools (PDF pp.289-294).
- FACT: Gauba finally examines sources of law, law's relation to morality and liberty, and the rule of law as an anti-arbitrariness principle (PDF pp.294-300).

SESSION 3 - Obligation Thinkers from Hobbes to Gandhi

5. Essential distinctions

- FACT: **Unlimited vs limited vs anti-obligation**: some theories demand near-total obedience, some qualify obedience by rights or common good, and some deny obligation to the coercive state itself (PDF pp.280-287).
- FACT: **Political authority vs government officials**: Gauba's conclusion insists that abstract authority is encountered in practice through fallible government officials; this is why caution is necessary (PDF pp.287-288).
- FACT: **Legal validity vs moral legitimacy**: a law may be technically valid because properly enacted, yet still morally contestable (PDF pp.290-292, 295-296).
- FACT: **Civil disobedience vs ordinary law-breaking**: civil disobedience is principled, public, non-violent and penalty-accepting; casual illegality is not (PDF p.287).
- FACT: **Resistance vs revolution**: resistance may seek correction of an unjust act or law; revolution aims at larger systemic transformation and carries higher risks (PDF p.288).
- FACT: **Descriptive/scientific law vs prescriptive law**: the first describes regularities in nature; the second prescribes conduct and is central to politics and jurisprudence (PDF pp.289-290).
- FACT: **Law and liberty**: law restrains some actions in order to secure equal liberty and other social goods (PDF pp.296-298).
- ANALYSIS: **Guilt, aim and severity**: proof of legal guilt is necessary before punishment, but is not sufficient to settle its legitimate aim or quantum. Culpability, harm, proportionality, prospects of reform and the rights of others remain separate questions.
- ANALYSIS: **Deterrence and severity**: harshness does not logically prove deterrent effectiveness; the latter is an empirical claim and cannot be assumed from the sentence alone.

6. Thinkers and positions

- FACT: **Hobbes**: obligation is strong because people consent to a sovereign for self-preservation and cannot safely recover their natural powers without anarchy (PDF pp.283-284).
- FACT: **Locke**: government is a trust to protect life, liberty and property; when it fails, people may resist and replace it (PDF pp.283-284).
- FACT: **Rousseau**: obligation is owed to the general will, so obedience is framed as obedience to one's higher, civic self (PDF pp.283-284).
- FACT: **Hegel**: by identifying obedience with the realization of divine reason in the state, he tends toward unlimited political obligation (PDF p.284).
- FACT: **T.H. Green**: obligation is limited by the common good; unjust commands need not bind conscience (PDF pp.284-286).

- FACT: **Marxists**: in a class-divided society, obligation is not owed to the capitalist state but to the working class and its emancipatory struggle (PDF p.286).
- FACT: **Anarchists**: all organized coercive authority is illegitimate, so the individual owes justice and cooperation, not obedience to the state (PDF p.286).
- FACT: **Gandhi / Thoreau**: unjust law may be disobeyed openly and non-violently; conscience and truth can justify disciplined disobedience (PDF p.287).

SESSION 4 - Jurisprudence, Resistance and Comparative Application

- FACT: **Austin, Kelsen and Hart within legal positivism; Dworkin as a major interpretivist critic (PDF pp.291-292):**
- **Austin (command theory)**: law is the command of a determinate sovereign, promulgated in a political society, backed by sanction; disobedience must be punishable. International law is not "law" in the strict sense - at best "positive morality" - because it lacks a promulgating sovereign and enforcing political superior.
- **Kelsen (Grundnorm/hierarchy)**: in *General Theory of Law and State* - first published in English in **1945** (Harvard University Press; translated from the German by Anders Wedberg) - Kelsen argues validity comes not just from proper promulgation but from conformity to a **basic norm (Grundnorm)**; law forms a **hierarchy of norms**, where each lower norm derives validity from a higher one, terminating in the Grundnorm. Kelsen remains a positivist because he keeps legal validity separate from questions of morality. **WRONG: Date correction (was previously given here as 1961)**: 1961 is the year of **Hart's** *The Concept of Law*, not of Kelsen's *General Theory of Law and State*; do not transfer Hart's date to Kelsen. **ANALYSIS**: Cite the work by title and, if a year is needed, use 1945 for this English edition only - do not attach a page, chapter, edition number or a German-original date to it in an answer, since none of that is verified in this file's source base.
- **Hart (critique of Austin; structure of rules)**: in *The Concept of Law* (1961), Hart argues Austin's coercive-command model is too narrow, being modelled on criminal law; civil law (contracts, marriages, wills) confers powers and distributes benefits rather than merely commanding and punishing. Hart replaces the command model with law as a **structure of rules** determining duties, rights, powers and law-making/amendment procedure, and rejects Kelsen's Grundnorm as resting on a social fact (what a given legal community actually treats as valid), not a free-standing hierarchy internal to the legal system. **ANALYSIS: Precision addition beyond Gauba's paraphrase (standard jurisprudence vocabulary, not a direct book quotation)**: Hart's own technical formulation - used across jurisprudence courses - distinguishes **primary rules** (rules imposing duties/obligations directly on conduct) from **secondary rules** (rules about rules: the **rule of recognition**, which identifies what counts as valid law in a system; rules of change, which allow law-making/amendment; and rules of adjudication, which authorise dispute-resolution). Gauba's "structure of rules" paraphrase is compatible with, but does not itself spell out, this primary/secondary vocabulary - use it to sharpen an answer, but attribute it to Hart's general framework rather than to a specific Gauba sentence.
- **Dworkin (principles in hard cases)**: in *Taking Rights Seriously* (1977), Dworkin criticises Hart's positivist account because source-based rules and a rule of recognition do not exhaust the legal standards used in **hard/disputed cases**. Judges also invoke **principles** (e.g., "a man should not benefit from his own wrong," used to bar a murderer inheriting from his victim). Principles are not "extra-legal" - Dworkin treats them as part of law - but unlike rules they possess weight, can conflict and cannot be arranged in a strict hierarchy. Judicial judgment is constrained by legal fit and principled justification; it is not strong discretion to legislate freely.
- **ANALYSIS: In one line**: Austin's command theory is revised within positivism by Kelsen's norm hierarchy and Hart's rule structure; Dworkin then challenges the positivist source/pedigree account by arguing that legal principles also constrain hard cases. Treat this as an internal positivist development followed by an interpretivist critique, not as four versions of one doctrine.
- FACT: **Savigny, Maine, Pound**: they represent historical and sociological jurisprudence, tying law to historical evolution and social purpose (PDF pp.292-294).

7. Illustrative examples

- FACT: Gauba's own caution that failure to deliver full employment, universal education or medical care is not by itself sufficient ground for resistance is a useful example of how he limits the politics of disobedience (PDF p.288).
- FACT: Thoreau's refusal to pay taxes and imprisonment are used by Gauba as a classic illustration of principled disobedience (PDF p.287).
- FACT: Conscientious objection to military service during the First World War is cited as a case where legal duty and moral conscience can clash (PDF p.287).
- FACT: Gandhi's 1930 salt-law defiance is Gauba's clearest illustration of public, non-violent civil disobedience against colonial law (PDF p.287).
- FACT: Gauba's law chapter uses reform of child marriage, widow-burning, untouchability and bonded labour as historical examples of law leading social-moral reform (PDF p.296).
- FACT: Traffic regulation appears as Gauba's simple illustration of morally neutral but order-preserving law and of rule-of-law clarity (PDF pp.296, 300).

8. Comparison table

A. Political-obligation positions **Semantic table split - Position**

- **Position:** FACT: **Unlimited / near-unlimited**
- **Core logic:** FACT: Obey because force, divine command, absolutist consent or exalted state leaves little room for resistance (PDF pp.280-284).
- **Main examples:** FACT: force theory, divine right, Hobbes, strong Hegelian reading, strong Rousseau reading (PDF pp.280-285).
- **Scope:** WRONG: Dangerous because it can sanctify unjust commands.
- **Position:** FACT: **Limited / conditional**
- **Core logic:** FACT: Obey when law protects rights or common good; resist when trust is broken or justice is violated (PDF pp.283-287).
- **Main examples:** FACT: Locke, Green, cautious constitutional resistance, Gandhi (PDF pp.283-287).
- **Scope:** FACT: Best basis for rule-bound but critical citizenship.
- **Position:** FACT: **Anti-obligation / negative obligation**
- **Core logic:** FACT: Existing coercive state is not morally owed obedience as such (PDF p.286).
- **Main examples:** FACT: Marxist and anarchist positions (PDF p.286).
- **Scope:** ANALYSIS: Strong critique, but difficult to institutionalize without transition problems.

B. Resistance, revolution, conscientious objection, civil disobedience **Semantic table split - Mode**

- **Mode:** FACT: **Resistance**
- **What it targets:** FACT: Specific unjust command, policy or authority abuse (PDF pp.287-288).
- **Method:** ANALYSIS: Can range from protest to direct action.
- **Relation to law:** ANALYSIS: May remain within or move against law.
- **Mode:** FACT: **Revolution**
- **What it targets:** FACT: The wider political or social order itself (PDF p.288).
- **Method:** FACT: Long-term systemic overturning.
- **Relation to law:** FACT: Goes beyond ordinary legal correction.
- **Mode:** FACT: **Conscientious objection**
- **What it targets:** FACT: A particular legal duty that conscience rejects, such as military service (PDF p.287).
- **Method:** FACT: Personal refusal.
- **Relation to law:** FACT: Accepts punishment rather than compliance.
- **Mode:** FACT: **Civil disobedience**
- **What it targets:** FACT: Unjust law or policy, usually to awaken public conscience (PDF p.287).
- **Method:** FACT: Public, non-violent, principled, penalty-accepting.

- **Relation to law:** FACT: Breaks specific law while respecting law in general.

C. Four jurisprudence schools **Semantic table split - School**

- **School:** FACT: **Natural law**
- **What law is:** FACT: Law draws authority from higher moral right or justice (PDF pp.290-291).
- **Key names:** FACT: Stoics, Roman jurists, Kant-style rational morality (PDF pp.290-291).
- **Risk if overstated:** WRONG: Can become too abstract if detached from institutions.
- **School:** FACT: **Analytical / positivist**
- **What law is:** FACT: Law is valid through social or institutional sources rather than because its content is morally sound (PDF pp.291-292).
- **Key names:** FACT: Austin (command), Kelsen (Grundnorm/hierarchy), Hart (rules; primary/secondary and rule-of-recognition vocabulary is a standard jurisprudence add-on, ANALYSIS:) (PDF pp.291-292).
- **Risk if overstated:** WRONG: Dworkin's interpretivist principles critique challenges the claim that source-based rules exhaust law.
- **School:** FACT: **Historical**
- **What law is:** FACT: Law evolves from custom, people and historical development (PDF pp.292-293).
- **Key names:** FACT: Savigny, Maine (PDF pp.292-293).
- **Risk if overstated:** WRONG: Can over-romanticize inherited norms.
- **School:** FACT: **Sociological**
- **What law is:** FACT: Law serves social purpose and should be judged by social effects (PDF pp.293-294).
- **Key names:** FACT: Duguit, Pound, Laski (PDF pp.293-294).
- **Risk if overstated:** WRONG: Can underplay formal validity if used carelessly.

ANALYSIS: **Classification caution:** this four-school grid (natural / analytical / historical / sociological) is Gauba's own organising structure and a widely used teaching device, but jurisprudence as a discipline does not treat this as a single settled taxonomy - other courses add legal realism, critical legal studies, or place Dworkin as a distinct "interpretivist" school rather than folding him into analytical jurisprudence as a "critic-from-within." Present this table as **one defensible organising scheme**, not as the only possible or final classification, especially when a question asks to "critically examine schools of jurisprudence."

D. Theories of punishment **Semantic table split - Theory**

- **Theory:** Retributive
- **Justifying question:** What does this culpable wrong deserve?
- **Strongest claim:** Proportion restores moral/legal balance and avoids private revenge (Socio-Political Philosophy, PDF p.164).
- **Main objection:** Pain may neither repair harm nor reform the offender; revenge must not masquerade as justice.
- **Theory:** Deterrent
- **Justifying question:** What sentence will prevent future crime?
- **Strongest claim:** Punishment may discourage the offender and the public (PDF p.165).
- **Main objection:** It risks using the offender merely as an example and may ignore impulsive crime or social causes.
- **Theory:** Reformative
- **Justifying question:** How can the offender return to lawful life?
- **Strongest claim:** Rehabilitation treats crime's personal and social causes (PDF pp.165-166).
- **Main objection:** Not every offence is explained by pathology or deprivation; grave culpability and public protection remain relevant.

SESSION 5 - Punishment, Traps, Boundaries and Source Discipline

9. UPSC traps and corrections

- WRONG: **"Civil disobedience means any illegal act done for a cause."** -> FACT: Gauba's version is public, non-violent, principled, last-resort and penalty-accepting (PDF p.287).
- WRONG: **"A valid law is automatically a just law."** -> FACT: Legal validity and moral legitimacy can diverge; the whole discussion of natural law, equity and conscience depends on this (PDF pp.290-296).
- WRONG: **"Rule of law means identical rights and duties in all situations."** -> FACT: Gauba's traffic example shows generality and clarity do not exclude differentiated regulation by relevant situation (PDF p.300).
- WRONG: **"Hobbes, Locke and Rousseau all justify the same kind of consent."** -> FACT: Hobbes prioritizes security, Locke trust and limited government, Rousseau general will and civic freedom (PDF pp.283-284).
- WRONG: **"Law always reduces liberty."** -> FACT: Under a democratic welfare state, law often secures equal liberty and social welfare by rational restraint (PDF pp.296-298).
- WRONG: **"This topic is basically Indian Polity."** -> FACT: This file gives conceptual tests; Indian statutes, Articles and case-law belong elsewhere.
- WRONG: **"Retribution means unlimited revenge."** -> FACT: A defensible retributive theory is proportional and public, not private vengeance.
 - WRONG: **"A severe sentence is automatically an effective deterrent."** -> FACT: Deterrence is an empirical proposition; severity alone is neither necessary nor sufficient proof of prevention.
 - WRONG: **"Reformative theory denies responsibility."** -> FACT: It changes the purpose and method of punishment; it does not by itself erase guilt, accountability or protection of society.
 - WRONG: **"Capital punishment follows automatically from a heinous crime."** -> FACT: The source presents rival arguments; irreversibility, error, human dignity, proportionality and deterrence must be separately examined (Socio-Political Philosophy, PDF pp.166-167).
- WRONG: **"Austin's command theory and Hart's rule theory are the same thing with different names."** -> FACT: Hart explicitly rejects Austin's coercive-command model as too narrow (built on the criminal-law model) and replaces it with a structure of rules covering duties, powers and procedure (PDF pp.291-292).
- WRONG: **"Kelsen's Grundnorm is a moral standard smuggled into positivism."** -> FACT: Kelsen keeps the basic norm purely as a validity-conferring apex of the legal hierarchy, deliberately separate from questions of morality or moral obligation - this is exactly why he remains a positivist despite using a normative concept (PDF p.291).
- WRONG: **"Kelsen's General Theory of Law and State is a 1961 work."** -> FACT: **1945** is the year of its first English publication (Harvard University Press, tr. Anders Wedberg); **1961** belongs to **Hart's *The Concept of Law***. The two dates sit adjacent in the Austin -> Kelsen -> Hart -> Dworkin sequence and are easily swapped - if unsure in the exam hall, name the works and the sequence without dates rather than guessing a year (§12, bibliographic-dates note).
- WRONG: **"Dworkin says judges can decide hard cases however they like."** -> FACT: Dworkin insists principles are part of law and constrain judicial reasoning even though they are less precise than rules and cannot be hierarchically ranked; discretion is bounded, not unlimited (PDF p.292).
- WRONG: **"Political obligation, resistance, civil disobedience and revolution are interchangeable terms for defying the state."** -> FACT: Keep them analytically separate: obligation asks whether/why one should obey at all; resistance targets a specific unjust act; civil disobedience is a disciplined, public, penalty-accepting mode of resistance; revolution targets the wider order itself and carries the highest risk (PDF pp.287-288, Table B).

Verified local PYQ transfer

- FACT: **2025**: Can the right to life be absolute with reference to capital punishment?
- FACT: **2024**: Accept or reject capital punishment as an effective deterrent.
- FACT: **2023**: Proportionality and juvenile punishment.
- FACT: **2022**: Moral justifications of capital punishment.

- ANALYSIS: Answer frame: define penal aim -> distinguish retribution/deterrence/reform -> apply proportionality -> test irreversibility and error -> separate moral argument from empirical deterrence -> conclude conditionally.

10. Cross-links and boundaries

- FACT: Use Political-Theory/advanced/14_Political-Obligation-Resistance-and-Law.md for fuller reconstruction, jurisprudence debate and answer-engine use.
- FACT: Use Political-Theory/basic/13_Diverse-Perspectives-on-the-State.md because the kind of state one imagines affects the scope of obedience one permits.
- FACT: Use Political-Theory/basic/11_Sovereignty-and-Pluralism.md for the earlier problem of where authority is located.
- FACT: Use Political-Theory/basic/05_Socialism-Fascism-Anarchism-and-Gandhism.md for ideological roots of anarchist and Gandhian positions.
- FACT: Use Philosophy/paper-2/socio-political/Individual-and-State.md and Philosophy/paper-2/socio-political/Forms-of-Government.md for Philosophy-optional parallels on state, authority and obligation.
- FACT: Use Polity/advanced/10_Amendment-and-Basic-Structure.md only for Indian constitutional application; this file does **not** reproduce statute/case detail.

11. Revision capsule / answer spine

- ANALYSIS: Open with the question itself: political obligation asks why, when and how far one must obey political authority.
- ANALYSIS: Divide answers into three camps: unlimited, limited and anti-obligation.
- ANALYSIS: Contrast Hobbes with Locke first; then add Rousseau and Green to show why consent or common good can still justify obedience without blind submission.
- ANALYSIS: Use Gandhi to define principled resistance: unjust law, public protest, non-violence, acceptance of penalty, no sectional selfishness.
- ANALYSIS: In law answers, define prescriptive law, list the four schools, then distinguish legality from morality and liberty.
- ANALYSIS: End with rule of law: known law, general law, non-retrospective law and restrained government.

12. Sources, metadata and tags

- FACT: Primary source used: Gauba, Ch.11 "Grounds and Limits of Political Obligation" and Ch.12 "Concept of Law" (PDF pp.280-300).
- FACT: Direct supplementary source: *Socio-Political Philosophy*, PDF pp.164-167, for retributive, deterrent, reformatory and capital-punishment arguments.
- FACT: Verified local PYQs: Philosophy/paper-2/_PYQ-SocioPolitical-2018-2025.md.
- FACT: Page clusters used: political obligation theories (PDF pp.280-287); Gauba's caution on resistance (PDF pp.287-288); nature and schools of law (PDF pp.289-294); law and morality/liberty/rule of law (PDF pp.295-300).
- ANALYSIS: All examples are historical or conceptual; no undated current-affairs claim is inserted.
- ANALYSIS: Boundary maintained: no Indian statute-by-statute or case-by-case Polity duplication.
- ANALYSIS: The primary/secondary-rules and rule-of-recognition vocabulary used for Hart, and the four-school classification caution, are precision additions to Gauba's own paraphrase and are tagged ANALYSIS: rather than presented as direct book quotations.
- FACT: **Bibliographic dates used in §6 (verified, and deliberately kept minimal):** Kelsen, *General Theory of Law and State*, first English publication **1945** (Harvard University Press, tr. Anders Wedberg); Hart, *The Concept of Law*, **1961**; Dworkin, *Taking Rights Seriously*, **1977**. ANALYSIS: No page, chapter, edition number or original-language publication date is asserted for any of these three works, because Gauba's own pages (PDF pp.291-292) paraphrase the positions without supplying that bibliographic detail - avoid adding false precision in an answer.

SESSION 6 - Theses and Directive-Specific Architecture

13. Directive decoder, argument reconstruction and mark-scaled answer architecture

A. Thesis statements

- **Political-obligation question:** "Political obligation is not a single fact of obedience but a spectrum from unlimited (force, divine right) through limited/conditional (Locke, Green, Gandhi) to anti-obligation (Marxist, anarchist) - the correct answer identifies which rung of this ladder the question's scenario occupies before evaluating it."
- **Jurisprudence question:** "The jurisprudential debate moves from Austin's command theory through Kelsen's and Hart's positivist reconstructions to Dworkin's interpretivist challenge: Kelsen and Hart revise the source of legal validity within positivism, whereas Dworkin disputes that source-based rules exhaust the law applied in hard cases."

B. Directive decoder

Directive	What it demands	Trap to avoid
"Distinguish resistance from revolution"	Use Table B's four-row grid (target, method, relation to law) explicitly.	Do not treat civil disobedience as a synonym for either.
"Critically examine Austin's theory of sovereignty/law"	State command theory, then Hart's rules-based critique, then note Austin's own concession that morality still constrains the sovereign in practice.	Do not claim Austin denied all moral limits - he denied only a <i>legal</i> superior.
"Discuss Hart's concept of law"	Present the primary/secondary-rules and rule-of-recognition vocabulary as the standard elaboration of "structure of rules," while flagging it is a precision addition.	Do not attribute the primary/secondary vocabulary word-for-word to Gauba's paraphrase.
"Is civil disobedience justified?"	Apply Gandhi's conditions (open, non-violent, principled, last-resort, penalty-accepting, no sectional selfishness) as a test, then Gauba's caution against treating policy failure alone as sufficient ground.	Do not justify "any illegal act done for a cause" as civil disobedience.

SESSION 7 - Austin, Hart and Dworkin: Argument Reconstruction

C. Argument reconstruction (Austin -> Hart -> Dworkin, worked example)

- **Claim (Austin):** law is the sovereign's command backed by sanction; validity requires nothing more.
- **Objection (Hart):** this model cannot explain civil law (contracts, wills) which confers powers rather than commanding; a "structure of rules" (including a rule of recognition) explains legal systems better.
- **Objection (Dworkin) to Hart:** source-based rules and a rule of recognition do not exhaust the standards used in hard/disputed cases; judges also rely on legal principles whose authority is not reducible to pedigree alone.
- **Reply/limit:** the sequence contains two different moves. Kelsen and Hart reconstruct positivism beyond Austin's command model; Dworkin challenges positivism's source/pedigree boundary by treating principles as legally binding. Inclusive positivist replies may accommodate some principles through recognised social sources, but Dworkin is not merely a later positivist refinement.

SESSION 8 - Named Evidence for Obligation, Law and Resistance

D. Five+ named evidence units

1. Thoreau's tax refusal and imprisonment - principled civil disobedience.
2. Gandhi's 1930 salt-law defiance - public, non-violent, penalty-accepting civil disobedience against colonial law.
3. Conscientious objection to WWI military service - legal duty vs conscience.
4. Austin's international-law exclusion ("positive morality," not "positive law") - sharpens the command-theory test.
5. Kelsen's hierarchy of norms terminating in the Grundnorm - validity chain example.
6. The "man should not benefit from his own wrong" principle (Dworkin's murderer-inheritance example) - principles-in-hard-cases illustration.
7. Traffic regulation - Gauba's own illustration of rule-of-law clarity without excluding differentiated regulation.

SESSION 9 - Claim-Evidence-Limit and Mark-Scaled Answers

E. Claim -> evidence -> significance -> limit (worked micro-example)

- **Claim:** legal validity and moral legitimacy are conceptually separate.
- **Evidence:** Austin's own concession that a legally unbound sovereign nonetheless "habitually observes fundamental moral principles" even without legal compulsion to do so (jurisprudence chapter framing, PDF pp.291-292; consistent with the identical point made about sovereignty at PDF p.184).
- **Significance:** the separation clarifies the natural-law objection that immoral enactments lack full authority and the Dworkinian objection that source-valid rules do not exhaust law. Dworkin's hard-case argument concerns the legal role of principles, not simply the importation of free-standing morality.
- **Limit:** the separation does not mean law and morality never overlap in practice - Gauba's own examples (reform of child marriage, widow-burning, untouchability, bonded labour) show law frequently *does* track moral reform; the claim is conceptual separability, not constant real-world divergence (PDF p.296).

F. Mark-scaled architecture

- **10-marker:** thesis -> one obligation camp OR one jurisprudence thinker -> one named example -> one-line verdict.
- **15-marker:** thesis -> two obligation camps contrasted (e.g., Locke vs Marxist) OR two jurisprudence thinkers (Austin vs Hart) -> one objection-reply pair -> verdict.
- **20-marker:** thesis -> full obligation spectrum (unlimited -> limited -> anti-obligation) OR full jurisprudence sequence (Austin -> Kelsen -> Hart -> Dworkin) -> the civil-disobedience/revolution distinction as a depth marker -> cautious Indian application -> reasoned, conditional verdict.

SESSION 10 - Cautious Indian Application and Final Integration

G. Cautious Indian application

- **ANALYSIS:** Gandhi's 1930 salt-law satyagraha is the file's own verified illustration of civil disobedience and may be used directly (PDF p.287); do not extend it into unverified claims about specific participant numbers, dates beyond the salt march itself, or its precise legal aftermath unless independently confirmed.
- **ANALYSIS:** If a question invites comparison with contemporary Indian protest movements or constitutional remedies (e.g., judicial review of "unjust" laws), keep the comparison at the conceptual level (principled/public/non-violent vs. ordinary illegality) and route Article-specific or case-law detail to the Polity files, consistent with this file's own boundary statement.

BASIC MCQS / REMEDIATION

MCQ 1

Which option correctly states the source-grounded meaning or position associated with **Political obligation**?

A. the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280). B. refusal to comply with a legal duty because conscience forbids participation, as in objection to military service (PDF p.287). C. law is an instrument of social purpose and social engineering, not merely sovereign command (PDF pp.293-294). D. severity should not exceed the seriousness and culpability of the offence; this constrains punishment but does not by itself select retribution, deterrence or reform as the governing purpose.

Answer: A

Explanation: The canonical Basic owner pairs **Political obligation** with **the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 2

Which concept asks why, when and how far a person ought to obey political authority?

A. Unlimited vs limited vs anti-obligation B. Political obligation C. Kelsen (Grundnorm/hierarchy) D. Consent

Answer: B

Explanation: The canonical Basic owner pairs **the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280)** with **Political obligation**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 3

Which option correctly states the source-grounded meaning or position associated with **Force-based obligation**?

A. man-made law telling people what they should or should not do under specified conditions, backed by sanctions (PDF pp.289-290). B. governance through known, general, non-retrospective law and legally restrained power, not arbitrary will (PDF pp.298-300). C. obedience grounded mainly in the superior coercive power of the state (PDF pp.280-281). D. in General Theory of Law and State - first published in English in 1945 (Harvard University Press; translated from the German by Anders Wedberg) - Kelsen argues validity comes not just from proper promulgation but from conformity to a basic norm (Grundnorm); law forms a hierarchy of norms, where each lower norm derives validity from a higher one, terminating in the Grundnorm.

Answer: C

Explanation: The canonical Basic owner pairs **Force-based obligation** with **obedience grounded mainly in the superior coercive power of the state (PDF pp.280-281)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 4

A state secures submission solely through fear of sanctions. Which proposed ground explains compliance without yet proving a moral duty?

A. Legal validity vs moral legitimacy B. Hart (critique of Austin; structure of rules) C. Common good basis D. Force-based obligation

Answer: D

Explanation: The canonical Basic owner pairs **obedience grounded mainly in the superior coercive power of the state (PDF pp.280-281)** with **Force-based obligation**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 5

Which option correctly states the source-grounded meaning or position associated with **Consent**?

A. obedience grounded in explicit or implicit agreement to political authority, classically through social-contract reasoning (PDF pp.282-284). B. law derives authority from a higher moral order discoverable by reason (PDF pp.290-291). C. backward-looking punishment justified by the offender's culpable wrong and constrained by proportionality (Socio-Political Philosophy, PDF p.164). D. a law may be technically valid because properly enacted, yet still morally contestable (PDF pp.290-292, 295-296).

Answer: A

Explanation: The canonical Basic owner pairs **Consent** with **obedience grounded in explicit or implicit agreement to political authority, classically through social-contract reasoning (PDF pp.282-284)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 6

Which ground of obligation appeals to explicit or implicit agreement to political authority?

A. Civil disobedience vs ordinary law-breaking B. Consent C. Dworkin (principles in hard cases) D. Civil disobedience

Answer: B

Explanation: The canonical Basic owner pairs **obedience grounded in explicit or implicit agreement to political authority, classically through social-contract reasoning (PDF pp.282-284)**, with **Consent**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 7

Which option correctly states the source-grounded meaning or position associated with **Common good basis**?

A. law is positive law, technically valid because properly made and enforceable by authority (PDF pp.291-292). B. forward-looking punishment intended to discourage the offender (specific deterrence) or others (general deterrence) from future crime (PDF p.165). C. obedience owed only insofar as law promotes the shared good of the community, not every command of government (PDF pp.284-286). D. civil disobedience is principled, public, non-violent and penalty-accepting; casual illegality is not (PDF p.287).

Answer: C

Explanation: The canonical Basic owner pairs **Common good basis** with **obedience owed only insofar as law promotes the shared good of the community, not every command of government (PDF pp.284-286)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 8

Which ground limits obedience to laws that sustain the shared good and conditions of moral development?

A. Resistance vs revolution B. Political obligation C. Conscientious objection D. Common good basis

Answer: D

Explanation: The canonical Basic owner pairs **obedience owed only insofar as law promotes the shared good of the community, not every command of government (PDF pp.284-286)**, with **Common good basis**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 9

Which option correctly states the source-grounded meaning or position associated with **Civil disobedience**?

A. deliberate, public and non-violent disobedience of an unjust law or policy, with willingness to accept penalty (PDF p.287). B. law must be traced to social history, custom and legal evolution (PDF pp.292-293). C. forward-looking treatment aimed at rehabilitation and return to law-abiding life, often by addressing social, economic or psychological causes (PDF pp.165-166). D. the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280).

Answer: A

Explanation: The canonical Basic owner pairs **Civil disobedience** with **deliberate, public and non-violent disobedience of an unjust law or policy, with willingness to accept penalty (PDF p.287)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 10

A citizen openly and non-violently breaches a specific unjust law and accepts punishment. Which mode of resistance is this?

A. Austin (command theory) B. Civil disobedience C. Force-based obligation D. Prescriptive law

Answer: B

Explanation: The canonical Basic owner pairs **deliberate, public and non-violent disobedience of an unjust law or policy, with willingness to accept penalty (PDF p.287)**, with **Civil disobedience**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 11

Which option correctly states the source-grounded meaning or position associated with **Conscientious objection**?

A. law is an instrument of social purpose and social engineering, not merely sovereign command (PDF pp.293-294). B. severity should not exceed the seriousness and culpability of the offence; this constrains punishment but does not by itself select retribution, deterrence or reform as the governing purpose. C. refusal to comply with a legal duty because conscience forbids participation, as in objection to military service (PDF p.287). D. law is the command of a determinate sovereign, promulgated in a political society, backed by sanction; disobedience must be punishable. International law is not "law" in the strict sense - at best "positive morality" - because it lacks a promulgating sovereign and enforcing political superior.

Answer: C

Explanation: The canonical Basic owner pairs **Conscientious objection** with **refusal to comply with a legal duty because conscience forbids participation, as in objection to military service (PDF p.287)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 12

A person refuses a particular legal duty because conscience forbids participation. Which category applies?

A. Kelsen (Grundnorm/hierarchy) B. Consent C. Natural law school D. Conscientious objection

Answer: D

Explanation: The canonical Basic owner pairs **refusal to comply with a legal duty because conscience forbids participation, as in objection to military service (PDF p.287)**, with **Conscientious objection**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 13

Which option correctly states the source-grounded meaning or position associated with **Prescriptive law**?

A. man-made law telling people what they should or should not do under specified conditions, backed by sanctions (PDF pp.289-290). B. some theories demand near-total obedience, some qualify obedience by rights or common good, and some deny obligation to the coercive state itself (PDF pp.280-287). C. obedience grounded in explicit or implicit agreement to political authority, classically through social-contract reasoning (PDF pp.282-284). D. backward-looking punishment justified by the offender's culpable wrong and constrained by proportionality (Socio-Political Philosophy, PDF p.164).

Answer: A

Explanation: The canonical Basic owner pairs **Prescriptive law** with **man-made law telling people what they should or should not do under specified conditions, backed by sanctions (PDF pp.289-290)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 14

Which kind of law directs what people should or should not do, rather than describing a natural regularity?

A. Hart (critique of Austin; structure of rules) B. Prescriptive law C. Common good basis D. Analytical jurisprudence

Answer: B

Explanation: The canonical Basic owner pairs **man-made law telling people what they should or should not do under specified conditions, backed by sanctions (PDF pp.289-290)** with **Prescriptive law**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 15

Which option correctly states the source-grounded meaning or position associated with **Natural law school**?

A. backward-looking punishment justified by the offender's culpable wrong and constrained by proportionality (Socio-Political Philosophy, PDF p.164). B. forward-looking punishment intended to discourage the offender (specific deterrence) or others (general deterrence) from future crime (PDF p.165). C. law derives authority from a higher moral order discoverable by reason (PDF pp.290-291). D. civil disobedience is principled, public, non-violent and penalty-accepting; casual illegality is not (PDF p.287).

Answer: C

Explanation: The canonical Basic owner pairs **Natural law school** with **law derives authority from a higher moral order discoverable by reason (PDF pp.290-291)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 16

Which school makes legal authority answerable to a higher moral order or rational standard of justice?

A. Dworkin (principles in hard cases) B. Civil disobedience C. Historical jurisprudence D. Natural law school

Answer: D

Explanation: The canonical Basic owner pairs **law derives authority from a higher moral order discoverable by reason (PDF pp.290-291)** with **Natural law school**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 17

Which option correctly states the source-grounded meaning or position associated with **Analytical jurisprudence**?

A. law is positive law, technically valid because properly made and enforceable by authority (PDF pp.291-292). B. forward-looking punishment intended to discourage the offender (specific deterrence) or others (general deterrence) from future crime (PDF p.165). C. civil disobedience is principled, public, non-violent and penalty-accepting; casual illegality is not (PDF p.287). D. deliberate, public and non-violent disobedience of an unjust law or policy, with willingness to accept penalty (PDF p.287).

Answer: A

Explanation: The canonical Basic owner pairs **Analytical jurisprudence** with **law is positive law, technically valid because properly made and enforceable by authority (PDF pp.291-292)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 18

Which school studies positive legal validity through institutional sources, promulgation and enforceability?

A. Political obligation B. Analytical jurisprudence C. Conscientious objection D. Sociological jurisprudence

Answer: B

Explanation: The canonical Basic owner pairs **law is positive law, technically valid because properly made and enforceable by authority (PDF pp.291-292)** with **Analytical jurisprudence**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 19

Which option correctly states the source-grounded meaning or position associated with **Historical jurisprudence**?

A. forward-looking treatment aimed at rehabilitation and return to law-abiding life, often by addressing social, economic or psychological causes (PDF pp.165-166). B. resistance may seek correction of an unjust act or law; revolution aims at larger systemic transformation and carries higher risks (PDF p.288). C. law must be traced to social history, custom and legal evolution (PDF pp.292-293). D. the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280).

Answer: C

Explanation: The canonical Basic owner pairs **Historical jurisprudence** with **law must be traced to social history, custom and legal evolution (PDF pp.292-293)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 20

Which school explains law through custom, social history and legal evolution?

A. Force-based obligation B. Prescriptive law C. Rule of law D. Historical jurisprudence

Answer: D

Explanation: The canonical Basic owner pairs **law must be traced to social history, custom and legal evolution (PDF pp.292-293)**, with **Historical jurisprudence**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 21

Which option correctly states the source-grounded meaning or position associated with **Sociological jurisprudence**?

A. law is an instrument of social purpose and social engineering, not merely sovereign command (PDF pp.293-294). B. severity should not exceed the seriousness and culpability of the offence; this constrains punishment but does not by itself select retribution, deterrence or reform as the governing purpose. C. law is the command of a determinate sovereign, promulgated in a political society, backed by sanction; disobedience must be punishable. International law is not "law" in the strict sense - at best "positive morality" - because it lacks a promulgating sovereign and enforcing political superior. D. obedience grounded mainly in the superior coercive power of the state (PDF pp.280-281).

Answer: A

Explanation: The canonical Basic owner pairs **Sociological jurisprudence** with **law is an instrument of social purpose and social engineering, not merely sovereign command (PDF pp.293-294)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 22

Which school treats law as an instrument of social purpose and evaluates its effects?

A. Consent B. Sociological jurisprudence C. Natural law school D. Retributive punishment

Answer: B

Explanation: The canonical Basic owner pairs **law is an instrument of social purpose and social engineering, not merely sovereign command (PDF pp.293-294)**, with **Sociological jurisprudence**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 23

Which option correctly states the source-grounded meaning or position associated with **Rule of law**?

A. some theories demand near-total obedience, some qualify obedience by rights or common good, and some deny obligation to the coercive state itself (PDF pp.280-287). B. obedience grounded in explicit or implicit agreement to political authority, classically through social-contract reasoning (PDF pp.282-284). C. governance through known, general, non-retrospective law and legally restrained power, not arbitrary will (PDF pp.298-300). D. backward-looking punishment justified by the offender's culpable wrong and constrained by proportionality (Socio-Political Philosophy, PDF p.164).

Answer: C

Explanation: The canonical Basic owner pairs **Rule of law** with **governance through known, general, non-retrospective law and legally restrained power, not arbitrary will (PDF pp.298-300)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 24

Which ideal requires known, general, prospective law and restraint of arbitrary governmental power?

A. Common good basis B. Analytical jurisprudence C. Deterrent punishment D. Rule of law

Answer: D

Explanation: The canonical Basic owner pairs **governance through known, general, non-retrospective law and legally restrained power, not arbitrary will (PDF pp.298-300)**. with **Rule of law**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 25

Which option correctly states the source-grounded meaning or position associated with **Retributive punishment**?

A. backward-looking punishment justified by the offender's culpable wrong and constrained by proportionality (Socio-Political Philosophy, PDF p.164). B. a law may be technically valid because properly enacted, yet still morally contestable (PDF pp.290-292, 295-296). C. in The Concept of Law (1961), Hart argues Austin's coercive-command model is too narrow, being modelled on criminal law; civil law (contracts, marriages, wills) confers powers and distributes benefits rather than merely commanding and punishing. D. obedience owed only insofar as law promotes the shared good of the community, not every command of government (PDF pp.284-286).

Answer: A

Explanation: The canonical Basic owner pairs **Retributive punishment** with **backward-looking punishment justified by the offender's culpable wrong and constrained by proportionality (Socio-Political Philosophy, PDF p.164)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 26

Which punishment theory asks what a culpable wrong deserves while requiring proportionate public sanction?

A. Civil disobedience B. Retributive punishment C. Historical jurisprudence D. Reformatory punishment

Answer: B

Explanation: The canonical Basic owner pairs **backward-looking punishment justified by the offender's culpable wrong and constrained by proportionality (Socio-Political Philosophy, PDF p.164)**. with **Retributive punishment**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 27

Which option correctly states the source-grounded meaning or position associated with **Deterrent punishment**?

A. civil disobedience is principled, public, non-violent and penalty-accepting; casual illegality is not (PDF p.287). B. in Taking Rights Seriously (1977), Dworkin criticises Hart's positivist account because source-based rules and a rule of recognition do not exhaust the legal standards used in hard/disputed cases. C. forward-looking punishment intended to discourage the offender (specific deterrence) or others (general deterrence) from future crime (PDF p.165). D. deliberate, public and non-violent disobedience of an unjust law or policy, with willingness to accept penalty (PDF p.287).

Answer: C

Explanation: The canonical Basic owner pairs **Deterrent punishment** with **forward-looking punishment intended to discourage the offender (specific deterrence) or others (general deterrence) from future crime (PDF p.165)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 28

Which punishment theory justifies sanction through the prevention of future offending?

A. Conscientious objection B. Sociological jurisprudence C. Proportionality D. Deterrent punishment

Answer: D

Explanation: The canonical Basic owner pairs **forward-looking punishment intended to discourage the offender (specific deterrence) or others (general deterrence) from future crime (PDF p.165)**. with **Deterrent punishment**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 29

Which option correctly states the source-grounded meaning or position associated with **Reformative punishment**?

A. forward-looking treatment aimed at rehabilitation and return to law-abiding life, often by addressing social, economic or psychological causes (PDF pp.165-166). B. resistance may seek correction of an unjust act or law; revolution aims at larger systemic transformation and carries higher risks (PDF p.288). C. the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280). D. refusal to comply with a legal duty because conscience forbids participation, as in objection to military service (PDF p.287).

Answer: A

Explanation: The canonical Basic owner pairs **Reformative punishment** with **forward-looking treatment aimed at rehabilitation and return to law-abiding life, often by addressing social, economic or psychological causes (PDF pp.165-166)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 30

Which punishment theory centres rehabilitation and the offender's return to lawful life?

A. Prescriptive law B. Reformative punishment C. Rule of law D. Unlimited vs limited vs anti-obligation

Answer: B

Explanation: The canonical Basic owner pairs **forward-looking treatment aimed at rehabilitation and return to law-abiding life, often by addressing social, economic or psychological causes (PDF pp.165-166)**. with **Reformative punishment**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 31

Which option correctly states the source-grounded meaning or position associated with **Proportionality**?

A. law is the command of a determinate sovereign, promulgated in a political society, backed by sanction; disobedience must be punishable. International law is not "law" in the strict sense - at best "positive morality" - because it lacks a promulgating sovereign and enforcing political superior. B. obedience grounded mainly in the superior coercive power of the state (PDF pp.280-281). C. severity should not exceed the seriousness and culpability of the offence; this constrains punishment but does not by itself select retribution, deterrence or reform as the governing purpose. D. man-made law telling people what they should or should not do under specified conditions, backed by sanctions (PDF pp.289-290).

Answer: C

Explanation: The canonical Basic owner pairs **Proportionality** with **severity should not exceed the seriousness and culpability of the offence; this constrains punishment but does not by itself select retribution, deterrence or reform as the governing purpose**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 32

Which principle requires punishment severity to track the seriousness and culpability of the offence?

A. Natural law school B. Retributive punishment C. Legal validity vs moral legitimacy D. Proportionality

Answer: D

Explanation: The canonical Basic owner pairs **severity should not exceed the seriousness and culpability of the offence; this constrains punishment but does not by itself select retribution, deterrence or reform as the governing purpose.** with **Proportionality**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 33

Which option correctly states the source-grounded meaning or position associated with **Unlimited vs limited vs anti-obligation**?

A. some theories demand near-total obedience, some qualify obedience by rights or common good, and some deny obligation to the coercive state itself (PDF pp.280-287). B. in General Theory of Law and State - first published in English in 1945 (Harvard University Press; translated from the German by Anders Wedberg) - Kelsen argues validity comes not just from proper promulgation but from conformity to a basic norm (Grundnorm); law forms a hierarchy of norms, where each lower norm derives validity from a higher one, terminating in the Grundnorm. C. obedience grounded in explicit or implicit agreement to political authority, classically through social-contract reasoning (PDF pp.282-284). D. law derives authority from a higher moral order discoverable by reason (PDF pp.290-291).

Answer: A

Explanation: The canonical Basic owner pairs **Unlimited vs limited vs anti-obligation** with **some theories demand near-total obedience, some qualify obedience by rights or common good, and some deny obligation to the coercive state itself (PDF pp.280-287).** The other options are valid source terms or statements, but belong to different pairings.

MCQ 34

Which spectrum separates near-total obedience, conditional duty and denial of a duty to the coercive state?

A. Analytical jurisprudence B. Unlimited vs limited vs anti-obligation C. Deterrent punishment D. Civil disobedience vs ordinary law-breaking

Answer: B

Explanation: The canonical Basic owner pairs **some theories demand near-total obedience, some qualify obedience by rights or common good, and some deny obligation to the coercive state itself (PDF pp.280-287).** with **Unlimited vs limited vs anti-obligation**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 35

Which option correctly states the source-grounded meaning or position associated with **Legal validity vs moral legitimacy**?

A. in The Concept of Law (1961), Hart argues Austin's coercive-command model is too narrow, being modelled on criminal law; civil law (contracts, marriages, wills) confers powers and distributes benefits rather than merely commanding and punishing. B. obedience owed only insofar as law promotes the shared good of the community, not every command of government (PDF pp.284-286). C. a law may be technically valid because properly enacted, yet still morally contestable (PDF pp.290-292, 295-296). D. law is positive law, technically valid because properly made and enforceable by authority (PDF pp.291-292).

Answer: C

Explanation: The canonical Basic owner pairs **Legal validity vs moral legitimacy** with **a law may be technically valid because properly enacted, yet still morally contestable (PDF pp.290-292, 295-296).** The other options are valid source terms or statements, but belong to different pairings.

MCQ 36

Which distinction explains how a properly enacted rule can belong to a legal system yet remain morally contestable?

A. Historical jurisprudence B. Reformatory punishment C. Resistance vs revolution D. Legal validity vs moral legitimacy

Answer: D

Explanation: The canonical Basic owner pairs **a law may be technically valid because properly enacted, yet still morally contestable (PDF pp.290-292, 295-296)**. with **Legal validity vs moral legitimacy**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 37

Which option correctly states the source-grounded meaning or position associated with **Civil disobedience vs ordinary law-breaking**?

A. civil disobedience is principled, public, non-violent and penalty-accepting; casual illegality is not (PDF p.287). B. in Taking Rights Seriously (1977), Dworkin criticises Hart's positivist account because source-based rules and a rule of recognition do not exhaust the legal standards used in hard/disputed cases. C. the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280). D. severity should not exceed the seriousness and culpability of the offence; this constrains punishment but does not by itself select retribution, deterrence or reform as the governing purpose.

Answer: A

Explanation: The canonical Basic owner pairs **Civil disobedience vs ordinary law-breaking** with **civil disobedience is principled, public, non-violent and penalty-accepting; casual illegality is not (PDF p.287)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 38

Which distinction turns on publicity, principle, non-violence and willingness to accept penalty?

A. Sociological jurisprudence B. Civil disobedience vs ordinary law-breaking C. Proportionality D. Austin (command theory)

Answer: B

Explanation: The canonical Basic owner pairs **civil disobedience is principled, public, non-violent and penalty-accepting; casual illegality is not (PDF p.287)**. with **Civil disobedience vs ordinary law-breaking**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 39

Which option correctly states the source-grounded meaning or position associated with **Resistance vs revolution**?

A. the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280). B. law is an instrument of social purpose and social engineering, not merely sovereign command (PDF pp.293-294). C. resistance may seek correction of an unjust act or law; revolution aims at larger systemic transformation and carries higher risks (PDF p.288). D. severity should not exceed the seriousness and culpability of the offence; this constrains punishment but does not by itself select retribution, deterrence or reform as the governing purpose.

Answer: C

Explanation: The canonical Basic owner pairs **Resistance vs revolution** with **resistance may seek correction of an unjust act or law; revolution aims at larger systemic transformation and carries higher risks (PDF p.288)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 40

Which distinction separates correction of a specific injustice from transformation of the wider political order?

A. Rule of law B. Unlimited vs limited vs anti-obligation C. Kelsen (Grundnorm/hierarchy) D. Resistance vs revolution

Answer: D

Explanation: The canonical Basic owner pairs **resistance may seek correction of an unjust act or law; revolution aims at larger systemic transformation and carries higher risks (PDF p.288)**. with **Resistance vs revolution**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 41

Which option correctly states the source-grounded meaning or position associated with **Austin (command theory)**?

A. law is the command of a determinate sovereign, promulgated in a political society, backed by sanction; disobedience must be punishable. International law is not "law" in the strict sense - at best "positive morality" - because it lacks a promulgating sovereign and enforcing political superior. B. obedience grounded mainly in the superior coercive power of the state (PDF pp.280-281). C. man-made law telling people what they should or should not do under specified conditions, backed by sanctions (PDF pp.289-290). D. governance through known, general, non-retrospective law and legally restrained power, not arbitrary will (PDF pp.298-300).

Answer: A

Explanation: The canonical Basic owner pairs **Austin (command theory)** with **law is the command of a determinate sovereign, promulgated in a political society, backed by sanction; disobedience must be punishable. International law is not "law" in the strict sense - at best "positive morality" - because it lacks a promulgating sovereign and enforcing political superior**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 42

Who defines law through a determinate sovereign's command backed by sanction?

A. Retributive punishment B. Austin (command theory) C. Legal validity vs moral legitimacy D. Hart (critique of Austin; structure of rules)

Answer: B

Explanation: The canonical Basic owner pairs **law is the command of a determinate sovereign, promulgated in a political society, backed by sanction; disobedience must be punishable. International law is not "law" in the strict sense - at best "positive morality" - because it lacks a promulgating sovereign and enforcing political superior**. with **Austin (command theory)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 43

Which option correctly states the source-grounded meaning or position associated with **Kelsen (Grundnorm/hierarchy)**?

A. obedience grounded in explicit or implicit agreement to political authority, classically through social-contract reasoning (PDF pp.282-284). B. law derives authority from a higher moral order discoverable by reason (PDF pp.290-291). C. in General Theory of Law and State - first published in English in 1945 (Harvard University Press; translated from the German by Anders Wedberg) - Kelsen argues validity comes not just from proper promulgation but from conformity to a basic norm (Grundnorm); law forms a hierarchy of norms, where each lower norm derives validity from a higher one, terminating in the Grundnorm. D. backward-looking punishment justified by the offender's culpable wrong and constrained by proportionality (Socio-Political Philosophy, PDF p.164).

Answer: C

Explanation: The canonical Basic owner pairs **Kelsen (Grundnorm/hierarchy)** with **in General Theory of Law and State - first published in English in 1945 (Harvard University Press; translated from the German by Anders Wedberg) - Kelsen argues validity comes not just from proper promulgation but from conformity to a basic norm (Grundnorm); law forms a hierarchy of norms, where each lower norm derives validity from a higher one, terminating in the Grundnorm**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 44

Who reconstructs positivist validity as a hierarchy of norms terminating in a basic norm?

A. Deterrent punishment B. Civil disobedience vs ordinary law-breaking C. Dworkin (principles in hard cases) D. Kelsen (Grundnorm/hierarchy)

Answer: D

Explanation: The canonical Basic owner pairs in **General Theory of Law and State** - first published in English in 1945 (Harvard University Press; translated from the German by Anders Wedberg) - Kelsen argues validity comes not just from proper promulgation but from conformity to a basic norm (Grundnorm); law forms a hierarchy of norms, where each lower norm derives validity from a higher one, terminating in the Grundnorm. with Kelsen (Grundnorm/hierarchy). The other options are valid source terms or statements, but belong to different pairings.

MCQ 45

Which option correctly states the source-grounded meaning or position associated with **Hart (critique of Austin; structure of rules)**?

A. in *The Concept of Law* (1961), Hart argues Austin's coercive-command model is too narrow, being modelled on criminal law; civil law (contracts, marriages, wills) confers powers and distributes benefits rather than merely commanding and punishing. B. obedience owed only insofar as law promotes the shared good of the community, not every command of government (PDF pp.284-286). C. forward-looking punishment intended to discourage the offender (specific deterrence) or others (general deterrence) from future crime (PDF p.165). D. civil disobedience is principled, public, non-violent and penalty-accepting; casual illegality is not (PDF p.287).

Answer: A

Explanation: The canonical Basic owner pairs **Hart (critique of Austin; structure of rules)** with in **The Concept of Law (1961)**, Hart argues Austin's coercive-command model is too narrow, being modelled on criminal law; civil law (contracts, marriages, wills) confers powers and distributes benefits rather than merely commanding and punishing. The other options are valid source terms or statements, but belong to different pairings.

MCQ 46

Who replaces the coercive-command model with primary and secondary rules grounded in social practice?

A. Reformatory punishment B. Hart (critique of Austin; structure of rules) C. Resistance vs revolution D. Political obligation

Answer: B

Explanation: The canonical Basic owner pairs in **The Concept of Law (1961)**, Hart argues Austin's coercive-command model is too narrow, being modelled on criminal law; civil law (contracts, marriages, wills) confers powers and distributes benefits rather than merely commanding and punishing. with **Hart (critique of Austin; structure of rules)**. The other options are valid source terms or statements, but belong to different pairings.

MCQ 47

Which option correctly states the source-grounded meaning or position associated with **Dworkin (principles in hard cases)**?

A. deliberate, public and non-violent disobedience of an unjust law or policy, with willingness to accept penalty (PDF p.287). B. law must be traced to social history, custom and legal evolution (PDF pp.292-293). C. in *Taking Rights Seriously* (1977), Dworkin criticises Hart's positivist account because source-based rules and a rule of recognition do not exhaust the legal standards used in hard/disputed cases. D. forward-looking treatment aimed at rehabilitation and return to law-abiding life, often by addressing social, economic or psychological causes (PDF pp.165-166).

Answer: C

Explanation: The canonical Basic owner pairs **Dworkin (principles in hard cases)** with in **Taking Rights Seriously (1977)**, Dworkin criticises Hart's positivist account because source-based rules and a rule of recognition do not exhaust the legal standards used in hard/disputed cases. The other options are valid source terms or statements, but belong to different pairings.

MCQ 48

Who challenges source-based positivism by treating legal principles as binding constraints in hard cases?

A. Proportionality B. Austin (command theory) C. Force-based obligation D. Dworkin (principles in hard cases)

Answer: D

Explanation: The canonical Basic owner pairs in **Taking Rights Seriously (1977)**, Dworkin criticises Hart's **positivist account because source-based rules and a rule of recognition do not exhaust the legal standards used in hard/disputed cases**. with Dworkin (**principles in hard cases**). The other options are valid source terms or statements, but belong to different pairings.

PYQS AND ANSWER PRACTICE

Cross-application ownership note: These are verified Philosophy Optional questions whose primary owner is Philosophy Paper II - Crime and Punishment. They are not re-routed to Political Theory; they are included because this topic provides a directly usable supporting framework.

Solved PYQ 1 - 2022 Q1(e), 10 marks

Question: What are the moral justifications of capital punishment? Discuss.

Model solution

Thesis. The moral justifications of capital punishment are RETRIBUTIVE (desert), DETERRENT and INCAPACITATIVE -- but a justification stem still requires stating the fallibility and dignity counters that defeat them.

- **Doctrine.** Retributively, the gravest murders can seem to deserve the gravest penalty; Kant himself defended the death penalty on strict retributive grounds (C1) -- state this accurately, not as caricature. Deterrence claims execution uniquely saves future victims (contested, C3). Incapacitation guarantees the offender never kills again.

- **Objection -> reply.** Objection: irreversibility, human fallibility and unequal application undercut the desert case. Reply: even GRANTING desert, an irrevocable penalty administered by a fallible and unequally applied process cannot satisfy the proportionate desert offered to justify it -- and secure imprisonment already incapacitates, so incapacitation does not require killing.

Verdict. The justifications are genuine but defeasible: retributive desert is the strongest, yet fallibility plus irreversibility is the counter it cannot survive.

MEMORY: MEMORY: Why this earns marks -- it answers the "justifications" demand fully (C1 desert, deterrence, incapacitation) but a 10-marker still lands the decisive fallibility limit rather than eulogising the penalty.

Solved PYQ 2 - 2023 Q4(a), 20 marks

Question: "Severity of punishment should be proportionate to the seriousness of the crime." Do you agree that while punishing a juvenile, the nature of the crime should be considered? Justify your answer.

Model solution

Thesis. I agree that severity should be proportionate to seriousness, and that the NATURE of a juvenile's crime is a relevant input -- but it must not OVERRIDE the reduced culpability of a developmentally immature agent, whose desert, and therefore deserved severity, is lower.

- **What makes it hard.** The stem pits the seriousness of the ACT against the status of the OFFENDER, and it forces a choice only if we conflate the two.

- **Doctrine.** Proportionality has two dimensions (C10): ordinal proportionality ranks worse crimes above lesser ones; cardinal proportionality fixes the overall severity scale. The maxim in the stem is ordinal. Crucially, desert presupposes responsible agency (canonical 1.2); a juvenile's capacities for deliberation and self-control are still forming, so CULPABILITY -- the basis of desert -- is reduced (the responsibility gradient). Reformatory prospects are also greater (canonical 1.6), and restorative / reintegrative approaches (C8, C9) fit the juvenile case. Separating the three questions (C4) shows the AIM (prevent harm, reform) does not settle the AMOUNT (desert-capped severity).

- **Objection -> reply (two chains).** (1) Objection: grave crimes are grave whoever

commits them, so a heinous juvenile act warrants adult severity. Reply: the seriousness of the act is not irrelevant, but proportionate desert tracks culpability, which immaturity reduces -- so nature is one INPUT, not an OVERRIDE. (2)
Objection: reduced culpability means impunity and ignores victims. Reply: reduced is not zero; a proportionate, reform-oriented and restorative response answers victims without treating a child as an adult.

- **Critical qualification.** Foucault's caution (C7): open-ended "treatment" of

juveniles risks disciplinary control, so keep a determinate ceiling. Indian juvenile-justice and proportionality principles are legal facts (C15), not philosophical proofs, and no specific holding is asserted here.

Verdict. Agree with proportionality; in juvenile cases weigh the nature of the crime as ONE factor within a desert reduced by developmental immaturity -- individualised justice that neither trivialises grave harm nor punishes a child as an adult.

MEMORY: MEMORY: Why this earns marks -- a 20-marker that separates the three questions (C4), deploys ordinal/cardinal proportionality (C10) and the responsibility gradient, runs two objection chains, and lands a genuinely graded verdict.

Solved PYQ 3 - 2024 Q3(b), 15 marks

Question: On what grounds would you accept or reject the idea of capital punishment as an effective deterrent? Discuss.

Model solution

Thesis. I would REJECT reliance on capital punishment as a deterrent -- separating the EMPIRICAL question (does execution deter beyond life imprisonment?) from the MORAL question (even an effective deterrent may be impermissible). On both, the case fails.

- **Doctrine.** Deterrence rests on empirical presuppositions (C3): offenders weigh costs, and sanctions are known and certain. Beccaria's decisive point is that CERTAINTY and SWIFTNESS of detection deter more than SEVERITY of penalty -- so the marginal deterrent of execution OVER life imprisonment is not established and must never be assumed "proved" (Trap 3). If that marginal effect is unproven, the distinctively utilitarian ground for execution collapses.

- **Objection -> reply.** Objection: if it deters even slightly, it saves innocent lives and is justified. Reply: (a) the marginal effect is empirically unproven; (b) using the offender purely as a lever to frighten others instrumentalises him, the Kantian charge (C1); (c) irreversibility means wrongful executions cannot be corrected -- fallibility defeats the practice independently of deterrence.

Verdict. Reject on deterrence grounds: the empirical case is unproven and the moral case is independently defeated by instrumentalisation and irreversibility. What deters is the certainty of detection, not the severity of the penalty.

MEMORY: MEMORY: Why this earns marks -- it splits effectiveness from permissibility, uses Beccaria's certainty-over-severity (C3), and refuses to assert deterrence as proven.

Solved PYQ 4 - 2025 Q3(a), 20 marks

Question: Can one's right to life be absolute? Answer with reference to the idea of Capital Punishment.

Model solution

Thesis. No -- the right to life is not treated as absolute even by its defenders; but that concession does NOT license capital punishment, because custodial killing does not meet the conditions (imminent-threat self-defence, necessity) under which taking life is permitted.

- **What makes it hard.** The case is a three-way clash between desert, deterrence and dignity; separating the three questions (C4) reorganises it.

- **Doctrine.** The right to life is qualified even by its champions: self-defence and necessity are conceded exceptions (canonical 5), so an exceptionless right cannot be simply asserted. The decisive move is therefore CONDITIONAL -- is custodial killing relevantly LIKE self-defence? It is not: a convicted prisoner

poses no imminent threat that only killing can avert, and imprisonment already incapacitates. So the permitted exceptions do not reach the execution of a disarmed offender.

- **Competing theories at strength.** Retention: retributive desert (Kant, C1, himself a retentionist), deterrence (C3), incapacitation. Abolition: dignity, irreversibility, arbitrariness and discrimination, brutalisation; Beccaria's utilitarian abolitionism (C3).

- **Objection -> reply (two chains, including fallibility and standing).** (1) Objection: some crimes deserve death and society may defend itself. Reply: secure imprisonment already achieves incapacitation, so the self-defence analogy fails; and the fallibility verdict -- an irrevocable penalty by a fallible, unequally applied process cannot satisfy the proportionate desert offered to justify it. (2) Objection: the state takes life in war and self-defence, so why not in punishment? Reply: those involve imminent threat or necessity absent in custodial killing; Duff's standing point (C6) further weakens the state's title where it has denied the conditions of citizenship.

- **Critical qualification.** Distinguish philosophical evaluation from current law.

Indian legal facts (C15) -- Bachan Singh v. State of Punjab (1980, JUDGMENT) articulating the "rarest of rare" framework, and Law Commission of India Report No. 262 (2015, REPORT) recommending abolition except for terrorism-related offences -- are dated legal facts, not philosophical proofs.

Verdict. The right to life is not absolute, but its permitted exceptions do not extend to killing a disarmed, incapacitated prisoner; capital punishment therefore cannot be justified by the "not absolute" concession, and its irreversibility makes it incompatible with the very desert invoked to justify it.

MEMORY: MEMORY: Why this earns marks -- it concedes "not absolute", then blocks the inference with the custodial-killing-is-not-self-defence move, runs fallibility and standing (C6), and classifies the Indian facts (C15) as facts, not proofs.

ORIGINAL MAINS PRACTICE WITH MODEL SOLUTIONS

Original Mains Practice 1 - 10 marks

Question: Why is force insufficient to establish political obligation? Answer in about 150 words.

Model solution

Introduction: Political obligation asks why a person ought to obey political authority, whereas force explains only why disobedience may be costly.

Core analysis: A coercively superior state can secure outward compliance through fear, sanctions and control. That causal fact cannot create a moral duty, because otherwise every successful usurper or oppressor would automatically become legitimate. Obligation requires an additional justificatory basis such as consent, protection of rights, participation in a general will or promotion of the common good. Gauba therefore separates force-based obedience from authority and later cautions that citizens encounter abstract authority through fallible officials.

Critical evaluation: Coercion remains necessary for some law enforcement, but necessity does not convert force into rightfulness. The defensible position is that sanctions support a legitimate legal order; they cannot substitute for its public justification.

Conclusion: Force can explain compliance, but political obligation requires a publicly justifiable reason for obedience; without legitimacy, coercion produces submission rather than duty.

Why this earns marks: It defines the issue, states the controlling distinction, adds one limitation and closes with a direct verdict suited to a 10-mark answer.

Original Mains Practice 2 - 10 marks

Question: Distinguish resistance, revolution, conscientious objection and civil disobedience. Answer in about 150 words.

Model solution

Introduction: These forms of non-compliance differ by the object challenged, the scale of change sought, the method used and the actor's continuing relation to law.

Core analysis: Resistance targets a particular unjust command, policy or abuse and may remain inside constitutional politics. Revolution seeks transformation of the wider political or social order and therefore raises greater risks of violence, authority vacuum and unintended domination. Conscientious objection is normally a personal refusal to perform a specific legal duty that violates conscience, such as military service. Civil disobedience is public, principled and non-violent breach of a law or policy, undertaken to awaken public conscience with willingness to accept legal consequences.

Critical evaluation: The categories can overlap in practice, but they are not synonyms for illegality. The decisive test is whether refusal is limited and accountable or aims to replace the order itself.

Conclusion: The four differ by target, scale, method and relation to law, so disciplined resistance cannot be inferred merely from the fact that every form involves some refusal of authority.

Why this earns marks: It defines the issue, states the controlling distinction, adds one limitation and closes with a direct verdict suited to a 10-mark answer.

Original Mains Practice 3 - 15 marks

Question: Compare Hobbes, Locke, Rousseau and T.H. Green on the grounds and limits of political obligation. Answer in about 200 words.

Model solution

Introduction: The four thinkers justify obedience through different accounts of what political authority protects or expresses.

Core analysis: Hobbes grounds strong obligation in the need to escape insecurity: subjects authorise a sovereign for self-preservation and cannot casually reclaim natural liberty without reopening anarchy. Locke treats government as a limited trust for life, liberty and property; breach of trust restores a right of resistance. Rousseau locates obligation in the general will, framing obedience to public law as civic self-rule rather than submission to another's private will. Green limits obligation by the common good: law binds insofar as it sustains conditions of moral development, and conscience need not obey a command destructive of that good.

Further development: The comparison is also a sequence of resistance tests. Hobbes permits little organised recovery of authority because insecurity is the controlling fear. Locke makes breach of fiduciary trust decisive. Rousseau's general will creates the strongest democratic claim but risks converting disagreement into moral error. Green gives the most explicit common-good limit, yet must explain how citizens identify that good without simply replacing public law with private conscience. A defensible modern position combines lawful authority, rights-protection, participation and a carefully limited resistance doctrine.

Critical evaluation: Consent is therefore not one doctrine. Hobbes risks absolutism, Rousseau risks identifying dissenters with an allegedly higher self, Locke can understate social inequality, and Green may presume a common good that plural societies contest.

Conclusion: Their theories move from security and civic self-authorship to rights and common good, showing that consent alone cannot settle how far obedience extends or when resistance becomes justified.

Why this earns marks: It combines definition, named doctrinal evidence, comparison and a counter-position before giving a qualified 15-mark verdict.

Original Mains Practice 4 - 15 marks

Question: Critically examine the jurisprudential debate from Austin through Kelsen and Hart to Dworkin. Answer in about 200 words.

Model solution

Introduction: The debate begins with Austin's sovereign-command theory, develops through two positivist reconstructions and culminates in Dworkin's interpretivist challenge.

Core analysis: Austin defines law as a determinate sovereign's command backed by sanction, a model strong on coercive clarity but weak on power-conferring rules and legal continuity. Kelsen replaces personal command with a hierarchy of norms deriving validity from a presupposed Grundnorm while retaining the separation of validity from morality. Hart grounds legal validity in a social practice of primary and secondary rules, especially a rule of recognition, and explains powers, adjudication and legal change. Dworkin argues that source-based rules do not exhaust law in hard cases: judges are also constrained by principles possessing weight and requiring interpretive fit and justification.

Further development: The sequence should not be narrated as four cumulative additions to one positivist doctrine. Kelsen replaces the personal sovereign with a validity hierarchy, and Hart replaces coercive command with a social practice of primary and secondary rules. Dworkin then disputes the source/pedigree boundary itself by treating principles as legally binding and denying strong judicial discretion. The residual issue is whether inclusive positivism can recognise principles when a legal system's social practices incorporate them, or whether interpretation necessarily exceeds source-based validity.

Critical evaluation: Dworkin is not a fourth positivist refinement. Inclusive positivism may recognise principles through accepted social sources, but the residual dispute concerns whether legal obligation can be exhausted by pedigree or necessarily includes interpretive moral principle.

Conclusion: Kelsen and Hart reconstruct legal positivism beyond sovereign command, while Dworkin challenges its source-based limits; the debate is therefore an internal positivist development followed by an interpretivist critique.

Why this earns marks: It combines definition, named doctrinal evidence, comparison and a counter-position before giving a qualified 15-mark verdict.

Original Mains Practice 5 - 20 marks

Question: When is civil disobedience justified? Discuss with reference to Gandhi, Thoreau and the rule of law. Answer in about 250 words.

Model solution

Introduction: Civil disobedience is a morally serious breach of law intended to correct injustice without repudiating legal order as such.

Core analysis: Thoreau makes conscience central: a citizen should not cooperate personally with grave injustice merely because law commands it. Gandhi converts refusal into a disciplined public practice. The breach must be open, non-violent, principled, directed against a specific injustice, free from narrow sectional selfishness and willing to accept penalty. These conditions distinguish civil disobedience from clandestine evasion and from revolution. Its justification also depends on proportionality, the seriousness of the wrong and whether ordinary remedies are unavailable or exhausted. The 1930 salt-law satyagraha illustrates law-breaking that appeals to a wider public standard rather than private advantage.

Further development: The argument must also distinguish justification from political wisdom. A breach can satisfy conscience yet impose costs on third parties, invite imitation or weaken institutions protecting vulnerable groups. Publicity and acceptance of penalty expose the protester's reasons to reciprocal judgment, while non-violence and last resort limit harm. Gauba's warning that failure to deliver every welfare promise is not by itself sufficient ground for resistance prevents civil disobedience from becoming a routine substitute for democratic disagreement.

Critical evaluation: Rule of law creates a presumption of compliance because general, known and prospective rules protect equal liberty. Yet legality is not self-justifying. If rule of law prohibited every principled breach, it would protect arbitrary enactment from the moral standards that make legal authority worthy of obedience.

Conclusion: Civil disobedience is justified only as public, principled, non-violent and accountable resistance to serious injustice, preserving respect for law while denying that legality makes every command morally binding.

Why this earns marks: It develops multiple dimensions and named evidence units, tests the strongest objection and reply, and reaches a balanced 20-mark judgment.

Original Mains Practice 6 - 20 marks

Question: Can legal validity by itself generate political obligation? Discuss with reference to jurisprudence, resistance and the rule of law. Answer in about 250 words.

Model solution

Introduction: Legal validity identifies a rule as belonging to a legal system; political obligation asks whether citizens have a justified duty to obey it. The questions overlap institutionally but cannot be collapsed.

Core analysis: Austin, Kelsen and Hart explain validity through command, normative hierarchy and socially accepted rules respectively. Their accounts secure identifiable standards and continuity without making moral merit a condition of every law. Natural-law reasoning replies that radically unjust enactments lack full authority, while Dworkin shows that principles may be legally relevant even where source-based rules underdetermine a hard case. The distinction becomes practical in resistance. Locke permits resistance when government breaches its trust; Green limits obligation by common good; Gandhi and Thoreau justify accountable refusal of specific injustice. Rule of law strengthens obligation where law is known, general, prospective and restrained, because citizens receive security and equal treatment rather than arbitrary command.

Further development: Punishment reveals the same separation. Legal guilt is necessary before sanction, but it does not settle the legitimate aim or severity of punishment. Retribution, deterrence and reform answer different questions, while proportionality and fallibility constrain the state even after valid conviction. The March 2026 Tele-Law consultation offers a limited current anchor: accessible legal advice can strengthen rule-of-law legitimacy by making remedies practically usable, but service expansion alone cannot prove that every law or official decision is just.

Critical evaluation: Neither morality nor conscience should become an unlimited private veto. Publicity, non-violence, proportionality, procedural challenge and acceptance of consequences discipline resistance. Validity creates a presumption and coordination reason, but legitimacy, rights and contestability determine whether that reason matures into duty.

Conclusion: Legal validity supplies institutional order but not a complete duty to obey; obligation becomes defensible only when law is publicly known, non-arbitrary, rights-compatible and open to principled contestation.

Why this earns marks: It develops multiple dimensions and named evidence units, tests the strongest objection and reply, and reaches a balanced 20-mark judgment.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

Subject: Political Theory | **Tier:** Advanced | **GS/Optional relevance:** GS-II (Polity & Governance) conceptual foundation; PSIR Optional Paper-1 background. **Core area:** The moral grounds and limits of obedience, disciplined resistance, jurisprudential debates, and rival justifications of punishment. **Grounded in:** O. P. Gauba, *An Introduction to Political Theory*, Fifth Edition (2009), Ch.11-12, PDF pp.280-300; *Socio-Political Philosophy*, PDF pp.164-167 for punishment. **Source edition/cutoff:** Fifth Edition (2009); no post-2009 fact is assumed unless independently dated and tagged CURRENT:. **FACT:** = source-grounded | **ANALYSIS:** = analytical inference/synthesis | **CURRENT:** = dated current anchor | **WRONG:** = trap/misattribution. *Companion:* Political-Theory/basic/14_Political-Obligation-Resistance-and-Law.md.

1. One-screen advanced map

WHY OBEY?

force -> too coercive
divine right -> too theological
prudence -> order over ideal justice
consent -> strongest liberal route
common good -> idealist correction
class / anarchist critique -> obligation against the state
Gandhian conscience -> principled, public, non-violent disobedience

WHAT IS LAW?

prescriptive rule
debated by:
natural law / positivism / historical evolution / sociological purpose

FINAL TEST

legality != morality
restraint can protect liberty
rule of law restrains arbitrariness

PENAL TEST

guilt -> necessary threshold
proportionality -> upper constraint
retribution / deterrence / reform -> rival aims

- FACT: Gauba treats political obligation and concept of law as linked because obedience cannot be understood without knowing what counts as valid law, just law and limited government (PDF pp.280-300).
- ANALYSIS: The advanced theme is that neither legality nor obedience is morally self-authenticating.

2. Scope, assumptions and conceptual boundary

- FACT: Gauba frames political obligation as the problem of the logical and moral grounds of obeying political authority, including taxes, participation, jury service and military duty (PDF p.280).
- FACT: He then shifts to jurisprudence because the citizen's problem is not only whether to obey, but also what kind of norm law is and how it differs from morality and sheer force (PDF pp.289-300).
- ANALYSIS: This file is conceptual and normative: it does **not** catalogue Indian statutes, constitutional cases or administrative remedies.
- FACT: The chapter's practical assumption is anti-romantic: real obedience is demanded by governments staffed by fallible officials, not by abstract ideals alone (PDF pp.287-288).

3. Direct-book argument reconstruction

- FACT: Gauba first dismisses force majeure as a full theory of obligation because fear may secure compliance but cannot secure morally reasoned obedience (PDF pp.280-281).
- FACT: Divine-right theory fails on similar grounds: it sanctifies authority without allowing rational scrutiny of unjust rule (PDF p.281).
- FACT: Conservative thought improves matters by appealing to prudence, continuity and legitimacy, but it still leans toward obedience because disorder is seen as worse than many defects of government (PDF pp.281-282).
- FACT: Consent theory is the major liberal answer: people obey because authority is of their own making, yet Hobbes, Locke and Rousseau convert that premise into very different scopes of obligation (PDF pp.282-284).
- FACT: Idealism radicalizes obligation in Hegel but moderates it in Green, who ties obedience to common good and denies unconditional claims by government (PDF pp.284-286).
- FACT: Marxism and anarchism deny genuine political obligation to the coercive class-state, though Marxism ties duty to class struggle and anarchism to justice without government (PDF p.286).
- FACT: Gandhi then gives Gauba's most disciplined account of resistance: unjust law may be broken, but only openly, non-violently, after persuasion fails, with willingness to suffer penalty and without sectional selfishness (PDF p.287).
- FACT: Gauba's conclusion adds a final caution: resistance must be publicly reasoned, proportionate, constitutionally preceded and not so destructive that it unleashes chaos worse than the grievance itself (PDF pp.287-288).

- FACT: The law chapter then reclassifies the field: scientific law describes regularities, prescriptive law governs conduct, and jurisprudence debates whether law is moral reason, sovereign command, historical growth or social engineering (PDF pp.289-294).
- FACT: The final movement reconciles law with morality and liberty only conditionally: law may restrain to protect equal freedom and social welfare, but arbitrary or morally stagnant law becomes tyrannical; hence rule of law becomes crucial (PDF pp.295-300).

4. Definitions and distinctions

- FACT: **Political obligation**: a duty owed to political authority, not necessarily to every government action as such (PDF p.280).
- FACT: **Legitimacy**: though not fully theorized here, Gauba's conservative and rule-of-law discussions imply that rightful authority is different from naked power (PDF pp.281-282, 298-300).
- FACT: **Unlimited obligation**: obligation with no effective right of resistance or withdrawal, typical of force, divine-right and strong absolutist formulations (PDF pp.280-285).
- FACT: **Limited obligation**: obedience constrained by rights, common good, constitutional trust or conscience (PDF pp.283-287).
- FACT: **Negative obligation / anti-obligation**: refusal to concede moral obedience to the coercive class-state or organized authority as such (PDF p.286).
- FACT: **Civil disobedience**: public, principled, non-violent breach of unjust law with acceptance of punishment and general respect for law (PDF p.287).
- FACT: **Descriptive law**: a discovered regularity in nature or social science, tested as true or false (PDF p.289).
- FACT: **Prescriptive law**: a humanly made rule, backed by sanctions, telling people what to do or refrain from doing (PDF pp.289-290).
- FACT: **Positive law**: law expressing the sovereign will through proper enactment and enforceable sanction (PDF p.290).
- FACT: **Rule of law**: governance by known, general, prospective and legally restrained norms rather than arbitrary will (PDF pp.298-300).
- FACT: **Retribution**: backward-looking justification based on culpable desert and restoration of moral/legal balance; a liberal version must remain proportionate rather than vindictive (*Socio-Political Philosophy*, PDF p.164).
- FACT: **Specific/general deterrence**: prevention directed respectively at the offender and at potential offenders (PDF p.165).
- FACT: **Reformation/rehabilitation**: changing the offender's dispositions and conditions so that lawful reintegration becomes possible (PDF pp.165-166).
- ANALYSIS: **Penal proportionality**: seriousness of harm and culpability constrain severity, but proportionality is underdeterminate: it does not uniquely identify the humane, effective or just sentence.

5. Thinker-by-thinker positions

- FACT: **Hobbes**: obligation is broad because the sovereign is the rational antidote to insecurity; once natural powers are transferred, revolt reopens anarchy (PDF pp.283-284).
- FACT: **Locke**: obligation is conditional because government is a trust for protecting life, liberty and property; breach of trust legitimizes replacement (PDF pp.283-284).
- FACT: **Rousseau**: obligation is strict but self-imposed because sovereignty resides in the general will rather than an external ruler; civic freedom replaces raw natural liberty (PDF pp.283-284).
- FACT: **Hegel**: by elevating the state as divine reason embodied, he collapses moral freedom into obedience and risks unconditional statism (PDF p.284).
- FACT: **T.H. Green**: obligation is owed only to laws that serve the common good; society, not government alone, is the moral pivot (PDF pp.284-286).

- FACT: **Harold Laski**: Gauba uses him in conclusion to remind us that claims of state pre-eminence are in practice claims of fallible governments (PDF p.288).
- FACT: **Marxists**: obligation is redirected toward the working class and revolutionary solidarity, not toward the capitalist state (PDF p.286).
- FACT: **Anarchists**: the individual owes justice and cooperation but not obedience to organized coercive authority (PDF p.286).
- FACT: **Thoreau**: personal refusal to support injustice makes conscience a direct source of justified non-compliance (PDF p.287).
- FACT: **Gandhi**: civil disobedience must aim at change of heart, not destruction; it presupposes respect for law in general and opposition only to specific injustice (PDF p.287).
- FACT: **Austin**: law is sovereign command backed by sanction; international law becomes only positive morality on this test (PDF p.291).
- FACT: **Kelsen**: validity comes from proper promulgation and conformity to a basic norm within a hierarchy of norms (PDF pp.291-292).
- FACT: **Hart**: law is better understood as a structure of rules, not only coercive commands, and its standards of validity rest on social fact (PDF p.292).
- FACT: **Dworkin**: rules are insufficient in hard cases; judges also rely on principles that belong to law's working reality (PDF p.292).
- FACT: **Savigny / Maine / Pound**: law is historical growth, social evolution and social engineering, not merely command (PDF pp.292-294).

6. Competing perspectives

Semantic table split - Perspective

- **Perspective**: FACT: **Force theory**
- **Ground of obligation / legality**: FACT: Fear of superior coercion (PDF pp.280-281).
- **What it gets right**: FACT: Explains compliance under domination.
- **What it misses**: WRONG: Cannot explain moral obligation.
- **Perspective**: FACT: **Divine-right view**
- **Ground of obligation / legality**: FACT: Sacred source of rule (PDF p.281).
- **What it gets right**: FACT: Explains traditional reverence.
- **What it misses**: WRONG: Denies critical judgment and secular legitimacy.
- **Perspective**: FACT: **Conservative prudence**
- **Ground of obligation / legality**: FACT: Order, continuity and legitimacy are worth preserving (PDF pp.281-282).
- **What it gets right**: FACT: Warns against reckless revolution.
- **What it misses**: ANALYSIS: Can tolerate too much injustice for the sake of order.
- **Perspective**: FACT: **Consent theory**
- **Ground of obligation / legality**: FACT: Authority is justified because it is self-imposed or agreed to (PDF pp.282-284).
- **What it gets right**: FACT: Makes obedience intelligible in liberal terms.
- **What it misses**: ANALYSIS: Once-for-all consent is unstable unless continuously renewed.
- **Perspective**: FACT: **Idealist common-good view**
- **Ground of obligation / legality**: FACT: Obedience is owed to laws serving common good (PDF pp.284-286).
- **What it gets right**: FACT: Reconnects law with morality.
- **What it misses**: ANALYSIS: Risks abstraction if common good is invoked by officials without public control.
- **Perspective**: FACT: **Marxist view**
- **Ground of obligation / legality**: FACT: No duty to class-state; real duty runs against domination (PDF p.286).
- **What it gets right**: FACT: Reveals class bias behind "public" authority.

- **What it misses:** ANALYSIS: Underplays plural moral communities outside class.
- **Perspective:** FACT: **Anarchist view**
- **Ground of obligation / legality:** FACT: Organized authority lacks moral title (PDF p.286).
- **What it gets right:** FACT: Keeps coercion under relentless suspicion.
- **What it misses:** ANALYSIS: Hard to institutionalize stable large-scale order.
- **Perspective:** FACT: **Gandhian view**
- **Ground of obligation / legality:** FACT: Conscience can justify law-breaking under strict moral discipline (PDF p.287).
- **What it gets right:** FACT: Best account of principled resistance.
- **What it misses:** ANALYSIS: Demands unusual moral restraint from both leaders and followers.
- **Perspective:** FACT: **Natural-law jurisprudence**
- **Ground of obligation / legality:** FACT: Valid law should answer to higher justice (PDF pp.290-291).
- **What it gets right:** FACT: Preserves moral criticism of law.
- **What it misses:** ANALYSIS: Can lack procedural precision.
- **Perspective:** FACT: **Positivism**
- **Ground of obligation / legality:** FACT: Validity depends on source/form, not moral content alone (PDF pp.291-292).
- **What it gets right:** FACT: Gives technical clarity to legal systems.
- **What it misses:** WRONG: Can detach legality from legitimacy too sharply.

Punishment as a three-way argument

Semantic table split - Theory

- **Theory:** Retributive
- **Temporal direction:** Backward to the completed wrong
- **Moral unit:** Culpable agent and proportionate desert
- **Best argument:** Treats the offender as responsible rather than merely manipulable
- **Hardest objection:** Can reproduce vengeance and inflict suffering without prevention or repair
- **Theory:** Deterrent
- **Temporal direction:** Forward to future conduct
- **Moral unit:** Social prevention
- **Best argument:** Connects punishment to public protection
- **Hardest objection:** May instrumentalize the offender; severity does not establish effectiveness
- **Theory:** Reformative
- **Temporal direction:** Forward to future character and reintegration
- **Moral unit:** Offender as capable of change
- **Best argument:** Addresses causes and reduces exclusion
- **Hardest objection:** May understate culpability, victims and crimes not traceable to deprivation/pathology
- ANALYSIS: No single theory is sufficient for a complete penal philosophy. A defensible synthesis normally requires legality and proof, proportionality, public protection, humane treatment and a realistic opportunity for reform.
- ANALYSIS: Capital punishment creates a special asymmetry: because it is irreversible, later rectification of error and rehabilitation become impossible. This does not settle the debate by itself, but it raises the justificatory burden.

7. Internal debates and criticisms

- FACT: Gauba's objection to force and divine-right theories is foundational: compliance under terror or theology is not yet moral obligation (PDF pp.281-282).
- FACT: Hobbes, Locke and Rousseau all use consent, but consent does not do the same work in each system; the same word masks radically different models of sovereignty and resistance (PDF pp.283-284).
- FACT: Gauba's own comparative judgment clearly favours Locke's version because it ties government to ongoing consent and rights-protection rather than one decisive original surrender (PDF p.284).
- FACT: Hegelian statism collapses state and moral reason too easily; Gauba explicitly warns how such thinking can be recruited by fascistic demands for blind obedience (PDF p.284).
- FACT: Green corrects idealism by relocating moral priority in society and common good, yet his view still presupposes a relatively unified moral consciousness that may be difficult to identify in plural societies (PDF pp.285-286).
- FACT: Marxist and anarchist positions are powerful as critiques of domination, but they raise the practical problem of what institutional order replaces the rejected authority (PDF p.286).
- FACT: Gandhi's doctrine solves part of that problem by insisting on publicity, non-violence and acceptance of punishment, thereby distinguishing principled resistance from opportunistic disorder (PDF p.287).
- FACT: In jurisprudence, positivism secures legal certainty, but Dworkin's critique shows that adjudication often relies on principles that cannot be reduced to rule-application alone (PDF p.292).
- FACT: Historical and sociological jurisprudence recover law's social roots and ends, but they also risk weakening the sharpness of legality if everything is absorbed into custom or social purpose (PDF pp.292-294).
- FACT: Gauba's rule-of-law discussion adds a final criticism of procedural minimalism: if law becomes unjust, opaque or arbitrary, legality alone cannot rescue it (PDF pp.298-300).

8. Comparative matrix

Semantic table split - Theme

- **Theme: FACT: Unlimited obligation**
- **Core form:** force, divine right, Hobbes/Hegelian excess
- **Moral status:** WRONG: weak or over-centralized moral basis
- **Citizen's stance:** obedience with little space for dissent
- **Key page anchor:** PDF pp.280-285
- **Theme: FACT: Limited obligation**
- **Core form:** Locke, Green, cautious constitutionalism, Gandhi
- **Moral status:** FACT: stronger because rights/common good/conscience matter
- **Citizen's stance:** obey, debate, resist if justified
- **Key page anchor:** PDF pp.283-287
- **Theme: FACT: Anti-obligation**
- **Core form:** Marxist and anarchist
- **Moral status:** ANALYSIS: morality shifted away from state
- **Citizen's stance:** organize against coercive order
- **Key page anchor:** PDF p.286
- **Theme: FACT: Civil disobedience**
- **Core form:** public non-violent breach of unjust law
- **Moral status:** FACT: principled and morally disciplined
- **Citizen's stance:** break law openly, accept punishment
- **Key page anchor:** PDF p.287
- **Theme: FACT: Natural-law jurisprudence**
- **Core form:** law judged by higher right

- **Moral status:** FACT: keeps law answerable to justice
- **Citizen's stance:** critique unjust enactment
- **Key page anchor:** PDF pp.290-291
- **Theme:** FACT: **Analytical jurisprudence**
- **Core form:** law judged by source, form and sanction
- **Moral status:** ANALYSIS: valid law need not be just law
- **Citizen's stance:** obey or challenge using legal criteria
- **Key page anchor:** PDF pp.291-292
- **Theme:** FACT: **Historical jurisprudence**
- **Core form:** law as legal evolution
- **Moral status:** ANALYSIS: legitimacy grows from historical fit
- **Citizen's stance:** interpret law through social past
- **Key page anchor:** PDF pp.292-293
- **Theme:** FACT: **Sociological jurisprudence**
- **Core form:** law as social engineering
- **Moral status:** ANALYSIS: legitimacy linked to social purpose
- **Citizen's stance:** judge law by social effects
- **Key page anchor:** PDF pp.293-294

9. Application without current-affairs dependence

- ANALYSIS: When faced with a hypothetical unjust emergency order, first ask: is the issue about legal validity, moral legitimacy, or both?
- ANALYSIS: When faced with a tax-resistance problem, distinguish Thoreau-style conscience, Gandhian civil disobedience and revolutionary anti-state politics.
- ANALYSIS: When faced with a law restricting conduct, ask whether the restraint protects equal liberty, resolves civil conflict, regulates economic abuse or secures welfare; this follows Gauba's own fourfold reasoning on law and liberty (PDF pp.297-298).
- ANALYSIS: When faced with a hard judicial case, note that positivist rule-application may be supplemented by principle-based reasoning, which is where Dworkin becomes useful (PDF p.292).
- ANALYSIS: When faced with a question on rule of law, move beyond slogan and list the operational tests: notification, generality, prospectivity and restrained power (PDF p.298).

10. UPSC answer-engine prompts

- ANALYSIS: **Prompt 1:** Why is Locke's theory of political obligation more sustainable for modern democracy than Hobbes's or Rousseau's?
- ANALYSIS: **Prompt 2:** Distinguish resistance, revolution, conscientious objection and civil disobedience without reducing them to simple illegality.
- ANALYSIS: **Prompt 3:** Is legal validity enough for political obligation? Answer with reference to natural law, positivism and Gandhian conscience.
- ANALYSIS: **Prompt 4:** "Rule of law restrains liberty only in order to secure liberty more generally." Evaluate.
- ANALYSIS: **Prompt 5:** Can the state demand obedience when its officials are fallible and its laws morally contested?
- FACT: **Verified PYQ cluster (2022-2025):** moral justification of capital punishment; juvenile proportionality; deterrent effectiveness; right to life and death penalty.
- ANALYSIS: PYQ framework: thesis on penal purpose -> three theories -> proportionality and culpability -> error/irreversibility -> deterrence as empirical issue -> reform and public protection -> qualified conclusion.

11. Cross-links and exclusions

- FACT: Companion foundation file:
Political-Theory/basic/14_Political-Obligation-Resistance-and-Law.md.
- FACT: Use Political-Theory/basic/13_Diverse-Perspectives-on-the-State.md because different state theories generate different scopes of obedience.
- FACT: Use Political-Theory/basic/11_Sovereignty-and-Pluralism.md for the location and diffusion of authority.
- FACT: Use Political-Theory/basic/05_Socialism-Fascism-Anarchism-and-Gandhism.md for ideological background to anarchism and Gandhism.
- FACT: Use Philosophy/paper-2/socio-political/Individual-and-State.md and Philosophy/paper-2/socio-political/Forms-of-Government.md for optional-paper parallels.
- FACT: Use Polity/advanced/10_Amendment-and-Basic-Structure.md only when shifting from conceptual tests to Indian constitutional doctrine.
- FACT: Exclusion: this file does **not** reproduce Indian statutory classifications, constitutional Articles, landmark judgments or protest-law case summaries.

12. Factual-risk checks

- WRONG: Do **not** treat force-based compliance as the same thing as political obligation; Gauba rejects that equation (PDF pp.280-281).
- WRONG: Do **not** say Hobbes, Locke and Rousseau all generate either fully unlimited or fully identical consent; Gauba's discussion sharply differentiates them (PDF pp.283-284).
- WRONG: Do **not** describe civil disobedience as secret, violent, or penalty-evading; that would negate Gauba's Gandhi-Thoreau model (PDF p.287).
- WRONG: Do **not** equate analytical jurisprudence with the denial of all morality; Hart and Dworkin themselves complicate Austin-style command theory (PDF pp.291-292).
- WRONG: Do **not** say rule of law is only about procedure and never about rights-protection; Gauba reads Dicey more broadly than that (PDF pp.299-300).
- WRONG: Do **not** duplicate Indian statute/case material here; this file supplies the conceptual tests by which such material should later be judged.
- WRONG: Do **not** treat the second source's pro- and anti-capital-punishment lists as settled facts.

They are argument inventories; claims of deterrent success require independent evidence.

13. Sources, metadata and tags

- FACT: Primary source used: Gauba, Ch.11 "Grounds and Limits of Political Obligation" and Ch.12 "Concept of Law" (PDF pp.280-300).
- FACT: Direct supplementary source: *Socio-Political Philosophy*, PDF pp.164-167.
- FACT: Verified local PYQs: Philosophy/paper-2/_PYQ-SocioPolitical-2018-2025.md.
- FACT: Page clusters used: force/divine right/conservative/consent (PDF pp.280-284); idealist, Marxist, anarchist and Gandhian positions (PDF pp.284-287); Gauba's cautionary conclusion (PDF pp.287-288); law, jurisprudence, sources, morality, liberty and rule of law (PDF pp.289-300).
- ANALYSIS: All examples are historical or conceptual; no present-day statute/case claim is inserted.
- ANALYSIS: Boundary preserved: conceptual theory here, applied Indian legal doctrine elsewhere.

CONSOLIDATED REGISTER NOTES

EMBEDDED TWELVE-PANEL ASCII REVISION ATLAS

This text edition preserves the same source-grounded revision route as the separate printable ASCII deliverable.

ASCII PANEL 1/12 - Political Obligation: Problem, Definitions and Grounds

CENTRAL FOCUS

Political Obligation: Problem, Definitions and Grounds

[1] Political obligation asks why, when and how far authority should be obeyed.

|

v

[2] Force explains compliance but cannot by itself create a moral duty.

|

v

[3] Consent, common good and rights supply rival grounds of obligation.

|

v

[4] The subject therefore begins by separating power, authority and justified obedience.

|

v

VERDICT -> Coercive success explains obedience but not a duty to obey.

ANSWER USE -> Open by separating causal compliance from justified obligation.

ASCII PANEL 2/12 - Law: Nature, Schools and the Rule-of-Law Sequence

CENTRAL FOCUS

Law: Nature, Schools and the Rule-of-Law Sequence

[1] Prescriptive law directs conduct; scientific law describes regularity.

|

v

[2] Natural, analytical, historical and sociological schools ask different questions.

|

v

[3] Legal validity and moral legitimacy can diverge without making law irrelevant.

|

v

[4] Rule of law joins known rules to restraints on arbitrary public power.

|

v

VERDICT -> Law must be analysed through validity, purpose, history and restraint.

ANSWER USE -> Name the jurisprudential question before selecting a school.

ASCII PANEL 3/12 - Obligation Thinkers from Hobbes to Gandhi

CENTRAL FOCUS

Obligation Thinkers from Hobbes to Gandhi

[1] Hobbes prioritises security; Locke treats government as a limited trust.

|

v

[2] Rousseau links obedience to the general will; Green limits it by common good.

|

v

[3] Marxists and anarchists deny duty to the coercive state in different ways.

|

v

[4] Gandhi and Thoreau turn conscience into disciplined, public non-compliance.

|

v

VERDICT -> Grounds of obligation produce different limits on resistance.

ANSWER USE -> Compare security, trust, civic authorship and common good.

ASCII PANEL 4/12 - Jurisprudence, Resistance and Comparative Application

CENTRAL FOCUS

Jurisprudence, Resistance and Comparative Application

[1] Austin defines law through sovereign command and sanction.

|

v

[2] Kelsen and Hart reconstruct positivism through norm hierarchy and rule structure.

|

v

[3] Dworkin is an interpretivist critic, not a fourth positivist refinement.

|

v

[4] Resistance, revolution, objection and civil disobedience remain distinct modes.

|

v

VERDICT -> Dworkin challenges positivism rather than completing its internal sequence.

ANSWER USE -> Separate Austin, Kelsen, Hart and Dworkin by argumentative role.

ASCII PANEL 5/12 - Punishment, Traps, Boundaries and Source Discipline

CENTRAL FOCUS

Punishment, Traps, Boundaries and Source Discipline

[1] Retribution asks what culpable wrongdoing deserves.

|

v

[2] Deterrence asks what prevents future crime; reform asks how return is possible.

|

v

[3] Proportionality limits severity and prevents punishment from becoming revenge.

|

v

[4] Legal guilt never settles aim, quantum, fallibility or dignity by itself.

|

v

VERDICT -> Punishment requires guilt, a justified aim and proportionate severity.

ANSWER USE -> Do not infer deterrence or desert merely from a harsh sentence.

ASCII PANEL 6/12 - Theses and Directive-Specific Architecture

CENTRAL FOCUS

Theses and Directive-Specific Architecture

[1] A political-obligation thesis must identify unlimited, limited or anti-obligation.

|

v

[2] Directive control determines whether the answer distinguishes, discusses or evaluates.

|

v

[3] Civil-disobedience answers must state publicity, non-violence and accepted penalty.

|

v

[4] A jurisprudence answer must separate positivist reconstruction from Dworkin's critique.

|

v

VERDICT -> Directive fidelity determines the comparison and verdict required.

ANSWER USE -> State the obligation camp or jurisprudential dispute in the thesis.

ASCII PANEL 7/12 - Austin, Hart and Dworkin: Argument Reconstruction

CENTRAL FOCUS

Austin, Hart and Dworkin: Argument Reconstruction

- [1] Austin's command model cannot explain every power-conferring legal rule.
|
v
- [2] Hart answers with primary and secondary rules grounded in social practice.
|
v
- [3] Dworkin argues that legal principles constrain hard cases beyond pedigree tests.
|
v
- [4] The residual dispute concerns sources, principles and judicial interpretation.
|
v

VERDICT -> Legal systems contain commands, rules, practices and contested principles.

ANSWER USE -> Reconstruct each critique before judging the remaining dispute.

ASCII PANEL 8/12 - Named Evidence for Obligation, Law and Resistance

CENTRAL FOCUS

Named Evidence for Obligation, Law and Resistance

- [1] Thoreau's tax refusal illustrates conscience against participation in injustice.
|
v
- [2] Gandhi's salt-law defiance illustrates public and non-violent civil disobedience.
|
v
- [3] Kelsen's Grundnorm and Dworkin's inheritance principle are jurisprudential evidence.
|
v
- [4] Traffic regulation illustrates clarity and relevant differentiation under rule of law.
|
v

VERDICT -> Named examples earn marks only when their conceptual role is explicit.

ANSWER USE -> Pair every event or text with one distinction and one boundary.

ASCII PANEL 9/12 - Claim-Evidence-Limit and Mark-Scaled Answers

CENTRAL FOCUS

Claim-Evidence-Limit and Mark-Scaled Answers

- [1] A 10-marker needs one distinction, one thinker and a direct verdict.
|
v
- [2] A 15-marker compares grounds or runs one objection and reply.
|
v
- [3] A 20-marker integrates validity, legitimacy, resistance and rule of law.
|
v
- [4] Every conclusion must specify the conditions under which obedience remains justified.
|
v

VERDICT -> Mark-scaled structure prevents both slogan and uncontrolled narration.

ANSWER USE -> Expand from one distinction to an objection-reply architecture.

ASCII PANEL 10/12 - Cautious Indian Application and Final Integration

CENTRAL FOCUS

Cautious Indian Application and Final Integration

- [1] The March 2026 Tele-Law consultation is an access-to-justice anchor.
- |
- v
- [2] Accessible legal advice can make remedies and compliance practically meaningful.
- |
- v
- [3] Service expansion cannot prove that every enacted rule or official act is just.
- |
- v
- [4] Use the example for legitimacy and rule-of-law access, not unverified legal detail.
- |
- v

VERDICT -> Access to legal advice can support legitimacy without proving justice.

ANSWER USE -> Use Tele-Law only for remedies, accessibility and rule-of-law capacity.

ASCII PANEL 11/12 - MCQ Remediation and Trap Repair

CENTRAL FOCUS

MCQ Remediation and Trap Repair

- [1] Close options test force versus duty and validity versus legitimacy.
- |
- v
- [2] They also test resistance versus revolution and objection versus civil disobedience.
- |
- v
- [3] Austin, Kelsen and Hart remain distinct from Dworkin's interpretivist challenge.
- |
- v
- [4] Punishment theories answer desert, prevention and reform questions separately.
- |
- v

VERDICT -> Close options are separated by target, method and justificatory basis.

ANSWER USE -> Identify the decisive distinction before eliminating an option.

ASCII PANEL 12/12 - PYQ Ownership and Answer Practice

CENTRAL FOCUS

PYQ Ownership and Answer Practice

- [1] Four punishment PYQs are transferred only for cross-application.
- |
- v
- [2] Primary ownership remains Philosophy Paper II - Crime and Punishment.
- |
- v
- [3] Six original questions test obligation, resistance, jurisprudence and rule of law.
- |
- v
- [4] Final recall: valid law earns duty only through legitimacy and non-arbitrary rule.
- |
- v

VERDICT -> Cross-applied PYQs retain their Crime and Punishment ownership.

ANSWER USE -> Cite ownership, then apply only the relevant Political Theory lens.

ONE-PAGE CONCEPT GRID

Concept / thinker	Exam-ready formulation
Political obligation	the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280).
Force-based obligation	obedience grounded mainly in the superior coercive power of the state (PDF pp.280-281).
Consent	obedience grounded in explicit or implicit agreement to political authority, classically through social-contract reasoning (PDF pp.282-284).
Common good basis	obedience owed only insofar as law promotes the shared good of the community, not every command of government (PDF pp.284-286).
Civil disobedience	deliberate, public and non-violent disobedience of an unjust law or policy, with willingness to accept penalty (PDF p.287).

Concept / thinker	Exam-ready formulation
Conscientious objection	refusal to comply with a legal duty because conscience forbids participation, as in objection to military service (PDF p.287).
Prescriptive law	man-made law telling people what they should or should not do under specified conditions, backed by sanctions (PDF pp.289-290).
Natural law school	law derives authority from a higher moral order discoverable by reason (PDF pp.290-291).
Analytical jurisprudence	law is positive law, technically valid because properly made and enforceable by authority (PDF pp.291-292).
Historical jurisprudence	law must be traced to social history, custom and legal evolution (PDF pp.292-293).
Sociological jurisprudence	law is an instrument of social purpose and social engineering, not merely sovereign command (PDF pp.293-294).
Rule of law	governance through known, general, non-retrospective law and legally restrained power, not arbitrary will (PDF pp.298-300).

CORE REVISION SPINE

- Page clusters used: political obligation theories (PDF pp.280-287); Gauba's caution on resistance (PDF pp.287-288); nature and schools of law (PDF pp.289-294); law and morality/liberty/rule of law (PDF pp.295-300).
- Gauba defines the problem of political obligation as the question of how far, when and why an individual is obliged to obey law and political authority (PDF p.280).
- Gandhi supplies a disciplined doctrine of resistance: unjust law may be broken, but only openly, non-violently, after persuasion fails, and without sectional selfishness (PDF p.287).
- Resistance vs revolution: resistance may seek correction of an unjust act or law; revolution aims at larger systemic transformation and carries higher risks (PDF p.288).
- Use Gandhi to define principled resistance: unjust law, public protest, non-violence, acceptance of penalty, no sectional selfishness.
- Primary source used: Gauba, Ch.11 "Grounds and Limits of Political Obligation" and Ch.12 "Concept of Law" (PDF pp.280-300).
- The core exam move is to separate obedience, moral legitimacy, resistance, and legal validity, instead of merging them into one idea.
- The law chapter then supplies the conceptual grammar needed to distinguish valid law, just law, custom, adjudication, equity and rule of law (PDF pp.289-300).
- UPSC rewards answers that show civil disobedience is not casual law-breaking and that rule of law is not exhausted by mere procedure.
- The chapter also warns against romanticizing resistance: Gauba repeatedly urges caution, public debate and exhaustion of constitutional methods before extreme action (PDF pp.287-288).
- Political obligation: the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280).
- Force-based obligation: obedience grounded mainly in the superior coercive power of the state (PDF pp.280-281).

HIGH-RISK TRAPS

- Trap repair: "Civil disobedience means any illegal act done for a cause." -> Gauba's version is public, non-violent, principled, last-resort and penalty-accepting (PDF p.287).
- Trap repair: "A valid law is automatically a just law." -> Legal validity and moral legitimacy can diverge; the whole discussion of natural law, equity and conscience depends on this (PDF pp.290-296).
- Trap repair: "Rule of law means identical rights and duties in all situations." -> Gauba's traffic example shows generality and clarity do not exclude differentiated regulation by relevant situation (PDF p.300).
- Trap repair: "Hobbes, Locke and Rousseau all justify the same kind of consent." -> Hobbes prioritizes security, Locke trust and limited government, Rousseau general will and civic freedom (PDF pp.283-284).
- Trap repair: "Law always reduces liberty." -> Under a democratic welfare state, law often secures equal liberty and social welfare by rational restraint (PDF pp.296-298).
- Trap repair: "This topic is basically Indian Polity." -> This file gives conceptual tests; Indian statutes, Articles and case-law belong elsewhere.
- Trap repair: "Retribution means unlimited revenge." -> A defensible retributive theory is proportional and public, not private vengeance.
- Trap repair: "A severe sentence is automatically an effective deterrent." -> Deterrence is an empirical proposition; severity alone is neither necessary nor sufficient proof of prevention.

ANSWER SPINE

1. Define the exact doctrine or controversy in the question.
2. State a qualified thesis before narration begins.
3. Reconstruct premises, mechanism and conclusion.
4. Add named thinkers and one precise distinction.
5. Present the strongest objection, reply and residual limitation.
6. End with a graded verdict tied to the directive.

COMPLETE TOPIC CHECKLIST

- **Controlling question:** why, when and how far should a citizen obey political authority?
- **First distinction:** force can explain compliance; it cannot by itself generate moral obligation.
- **Obligation spectrum:** near-unlimited obligation, limited or conditional obligation, and anti-obligation.
- **Resistance spectrum:** resistance, revolution, conscientious objection and civil disobedience differ by target, method and scale.
- **Law sequence:** prescriptive law -> jurisprudential schools -> morality and liberty -> rule of law -> punishment.
- **Final verdict:** valid law creates order and a presumption of compliance, while legitimacy and non-arbitrariness determine whether obedience becomes duty.

OBLIGATION AND RESISTANCE GRID

Position	Ground of obedience	Limit or route of resistance
Hobbes	Security and authorised sovereign protection.	Very narrow resistance where self-preservation is directly threatened.
Locke	Government as a trust protecting life, liberty and property.	Breach of trust permits resistance and replacement.
Rousseau	Obedience to the general will as civic self-rule.	Risk that dissent is redescribed as failure to grasp the higher will.
T.H. Green	Common good and conditions of moral development.	Conscience need not obey commands destructive of that good.
Marxist	Class character of the capitalist state.	Obligation shifts toward emancipatory class struggle.

Position	Ground of obedience	Limit or route of resistance
Anarchist	Coercive authority lacks inherent moral title.	Justice and cooperation replace state-centred obedience.
Gandhi / Thoreau	Truth and conscience against serious injustice.	Public, principled and accountable non-compliance.

JURISPRUDENCE MAP

- **Austin:** determinate sovereign command backed by sanction; clear but too narrow for power-conferring law.
- **Kelsen:** validity through a hierarchy of norms terminating in a Grundnorm; remains positivist.
- **Hart:** primary and secondary rules grounded in social practice; replaces the command model.
- **Dworkin:** interpretivist critic who treats principles as legally constraining hard cases; not a fourth positivist refinement.
- **Savigny and Maine:** historical development and custom.
- **Pound and sociological jurisprudence:** law as instrument of social purpose.
- **Natural law:** legal authority remains answerable to a higher standard of right or justice.

CIVIL-DISOBEDIENCE TEST

1. Serious and publicly defensible injustice.
2. Open rather than clandestine action.
3. Non-violent and proportionate method.
4. Specific corrective purpose rather than private advantage.
5. Last-resort or exhausted ordinary remedies.
6. Willingness to accept legal consequences.
7. Continued respect for law as a general framework.

PUNISHMENT AND RULE-OF-LAW GRID

Semantic table split - Question

- **Question:** Primary concern
- **Retributive:** Desert for culpable wrongdoing.
- **Deterrent:** Prevention of future crime.
- **Reformative:** Rehabilitation and return to lawful life.
- **Question:** Main risk
- **Retributive:** Revenge or excessive suffering.
- **Deterrent:** Instrumentalising the offender and assuming unproved effects.
- **Reformative:** Paternalism or indeterminate treatment.
- **Question:** Required limit
- **Retributive:** Proportionality and public authority.
- **Deterrent:** Evidence, rights and a desert ceiling.
- **Reformative:** Responsibility, determinate limits and protection of others.

PYQ OWNERSHIP AND CURRENT APPLICATION

- The 2022-2025 capital-punishment questions are cross-applied here but remain owned by Philosophy Paper II - Crime and Punishment.
- The 29 March 2026 Tele-Law consultation illustrates technology-enabled legal aid and practical access to remedies.
- Use Tele-Law for rule-of-law accessibility and legitimacy; do not infer that every law or decision is just.
- Keep Article-specific, statutory and case-law detail in the relevant Polity owner.

OPTIONAL ADVANCED REFINEMENTS

- Separate legal validity, moral legitimacy and political obligation at every stage.
- Treat Dworkin as a critic of positivist source/pedigree accounts, while recognising inclusive-positivist replies.
- Distinguish a justified breach of one law from revolutionary rejection of the wider order.
- End every answer with a conditional verdict stating which feature makes obedience or resistance defensible.